

the_industrial_disputes_act - RAG Optimized Version

=== CHUNK 1 START ===

Title: CHAPTER I

Keywords: preliminary, sections, short, title, extent, commencement, definitions, dismissal

Semantic Category: Legal Act

CHAPTER I
PRELIMINARY
SECTIONS

1. Short title, extent and commencement.

2. Definitions.

2A. Dismissal, etc., of an individual workman to be deemed to be an industrial dispute.

=== *CHUNK 1 END* ===

=== CHUNK 2 START ===

Title: CHAPTER II

Keywords: tribunals, courts, conciliation, officers, labour, national, presiding, authorities

Semantic Category: Legal Act

CHAPTER II
AUTHORITIES UNDER THIS ACT
3. Works Committee.
4. Conciliation officers.
5. Board of Conciliation.
6. Courts of Inquiry.
7. Labour Courts.
7A. Tribunals.
7B. National Tribunals.
7C. Disqualifications for the presiding officers of Labour Courts, Tribunals and National Tribunals.
7D. Qualifications, terms and conditions of service of Presiding Officer.
8. Filling of vacancies.
9. Finality of orders constituting Boards, etc.

=== *CHUNK 2 END* ===

=== CHUNK 3 START ===

Title: CHAPTER IIA

Keywords: notice, change, power, government, exempt

Semantic Category: Legal Act

CHAPTER IIA
NOTICE OF CHANGE
9A. Notice of change.
9B. Power of Government to exempt.

=== *CHUNK 3 END* ===

=== **CHUNK 4 START** ===

Title: CHAPTER IIB

Keywords: authorities, reference, certain, individual, disputes, grievance, settlement, setting

Semantic Category: Legal Act

CHAPTER IIB

REFERENCE OF CERTAIN INDIVIDUAL DISPUTES TO GRIEVANCE SETTLEMENT AUTHORITIES

9C. Setting up of Grievance Settlement Authorities and reference of certain individual disputes to such

=== **CHUNK 4 END** ===

=== CHUNK 5 START ===

Title: CHAPTER III

Keywords: reference, disputes, boards, courts, tribunals, voluntary, arbitration

Semantic Category: Legal Act

CHAPTER III
REFERENCE OF DISPUTES TO BOARDS, COURTS OR TRIBUNALS
10. Reference of disputes to Boards, Courts or Tribunals.
10A. Voluntary reference of disputes to arbitration.
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=== CHUNK 5 END ===

=== CHUNK 6 START ===

Title: CHAPTER IV

Keywords: duties, courts, tribunals, powers, awards, procedure, conciliation, officers

Semantic Category: Legal Act

CHAPTER IV

PROCEDURE, POWERS AND DUTIES OF AUTHORITIES

SECTIONS

11. Procedure and powers of conciliation officers, Boards, Courts and Tribunals.

11A. Powers of Labour Courts, Tribunals and National Tribunals to give appropriate relief in case of dis

12. Duties of conciliation officers.

13. Duties of Board.

14. Duties of Courts.

15. Duties of Labour Courts, Tribunals and National Tribunals.

16. Form of report or award.

17. Publication of reports and awards.

17A. Commencement of the award.

17B. Payment of full wages to workman pending proceedings in higher courts.

18. Persons on whom settlements and awards are binding.

19. Period of operation of settlements and awards.

20. Commencement and conclusion of proceedings.

21. Certain matters to be kept confidential.

=== *CHUNK 6 END* ===

=== CHUNK 7 START ===

Title: CHAPTER V

Keywords: strikes, lock, outs, prohibition, illegal, general, financial

Semantic Category: Legal Act

CHAPTER V

STRIKES AND LOCK-OUTS

22. Prohibition of strikes and lock-outs.

23. General prohibition of strikes and lock-outs.

24. Illegal strikes and lock-outs.

25. Prohibition of financial aid to illegal strikes and lock-outs.

=== *CHUNK 7 END* ===

=== CHUNK 8 START ===

Title: CHAPTER VA

Keywords: workmen, compensation, retrenchment, case, undertakings, down, application, sections

Semantic Category: Legal Act

CHAPTER VA

LAY-OFF AND RETRENCHMENT 25A. Application of sections 25C to 25E.

25B. Definition of continuous service.

25C. Right of workmen laid-off for compensation.

25D. Duty of an employer to maintain muster rolls of workmen.

25E. Workmen not entitled to compensation in certain cases.

25F. Conditions precedent to retrenchment of workmen.

25FF. Compensation to workmen in case of transfer of undertakings.

25FFA. Sixty days' notice to be given of intention to close down any undertaking.

25FFF. Compensation to workmen in case of closing down of undertakings.

25G. Procedure for retrenchment.

25H. Re-employment of retrenched workmen.

25-I. [Repealed.] 25J. Effect of laws inconsistent with this Chapter.

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=== *CHUNK 8 END* ===

=== CHUNK 9 START ===

Title: CHAPTER VB

Keywords: special, provisions, relating, retrenchment, closure, certain, establishments, sections

Semantic Category: Legal Act

CHAPTER VB
SPECIAL PROVISIONS RELATING TO LAY-OFF, RETRENCHMENT AND CLOSURE IN CERTAIN
ESTABLISHMENTS
SECTIONS
25K. Application of

=== *CHUNK 9 END* ===

=== **CHUNK 10 START** ===

Title: Chapter VB.

Keywords: retrenchment, down, penalty, definitions, prohibition, conditions, precedent, workmen

Semantic Category: Legal Act

Chapter VB.

25L. Definitions.

25M. Prohibition of lay-off.

25N. Conditions precedent to retrenchment of workmen.

25-O. Procedure for closing down an undertaking.

25P. Special provision as to restarting of undertakings closed down before commencement of the Industrial Disputes Act, 1947.

25Q. Penalty for lay-off and retrenchment without previous permission.

25R. Penalty for closure.

25S. Certain provisions of

=== **CHUNK 10 END** ===

=== CHUNK 11 START ===

Title: Chapter VA to apply to an industrial establishment to which this Chapter applies.

Keywords: apply, industrial, establishment, applies

Semantic Category: Legal Act

Chapter VA to apply to an industrial establishment to which this Chapter applies.

=== *CHUNK 11 END* ===

=== CHUNK 12 START ===

Title: CHAPTER VC

Keywords: unfair, labour, practices, prohibition, practice, penalty, committing

Semantic Category: Legal Act

CHAPTER VC
UNFAIR LABOUR PRACTICES
25T. Prohibition of unfair labour practice.
25U. Penalty for committing unfair labour practices.

=== *CHUNK 12 END* ===

=== CHUNK 13 START ===

Title: CHAPTER VI

Keywords: penalty, illegal, strikes, lock, outs, penalties, instigation, giving

Semantic Category: Legal Act

CHAPTER VI

PENALTIES

26. Penalty for illegal strikes and lock-outs.

27. Penalty for instigation, etc.

28. Penalty for giving financial aid to illegal strikes and lock-outs.

29. Penalty for breach of settlement or award.

30. Penalty for disclosing confidential information.

30A. Penalty for closure without notice.

31. Penalty for other offences.

=== *CHUNK 13 END* ===

=== CHUNK 14 START ===

Title: CHAPTER VII

Keywords: power, schedule, certain, industrial, conditions, service, proceedings, provision

Semantic Category: Legal Act

CHAPTER VII

MISCELLANEOUS

32. Offence by companies, etc.

33. Conditions of service, etc., to remain unchanged under certain circumstances during pendency of proceedings.

33A. Special provision for adjudication as to whether conditions of service, etc., changed during pendency of proceedings.

33B. Power to transfer certain proceedings.

33C. Recovery of money due from an employer.

34. Cognizance of offences.

35. Protection of persons.

36. Representation of parties.

36A. Power to remove difficulties.

36B. Power to exempt.

37. Protection of action taken under the Act.

38. Power to make rules.

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SECTIONS

39. Delegation of powers.

40. Power to amend Schedules.

THE FIRST SCHEDULE.-INDUSTRIES WHICH MAY BE DECLARED TO BE PUBLIC UTILITY SERVICES UNDER SUB-CLAUSE (vi) OF CLAUSE (n) OF SECTION 2.

THE SECOND SCHEDULE.-MATTERS WITHIN THE JURISDICTION OF LABOUR COURTS.

THE THIRD SCHEDULE.-MATTERS WITHIN THE JURISDICTION OF INDUSTRIAL TRIBUNALS.

THE FOURTH SCHEDULE.-CONDITIONS OF SERVICE FOR CHANGE OF WHICH NOTICE IS TO BE GIVEN.

THE FIFTH SCHEDULE.-UNFAIR LABOUR PRACTICES.

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THE INDUSTRIAL DISPUTES ACT, 1947

ACT NO. 14 OF 1947

[11th March, 1947.] An Act to make provision for the investigation and settlement of industrial disputes

WHEREAS it is expedient to make provision for the investigation and settlement of industrial disputes, and for certain other purposes hereinafter appearing;

It is hereby enacted as follows:-

=== CHUNK 14 END ===

=== CHUNK 15 START ===

Title: CHAPTER I

Keywords: corporation, established, industrial, subs, india, insurance, schedule, omitted

Semantic Category: Legal Act

CHAPTER I

PRELIMINARY

1. Short title, extent and commencement.-(1) This Act may be called the Industrial Disputes Act, 1947.
- 2[(2) It extends to the whole of India:
3* * * *] (3) It shall come into force on the first day of April, 1947.
2. Definitions.-In this Act, unless there is anything repugnant in the subject or context,- (a) "appropriation"
2. Subs. by Act 36 of 1956, s. 2, for the sub-section (2) (w.e.f. 29-8-1956).
3. Omitted by Act 51 of 1970, s. 2 and the Schedule (w.e.f. 1-9-1971).
4. Certain words omitted by Act 36 of 1964, s. 2 (w.e.f. 19-12-1964).
5. The words "by the Federal Railway Authority" omitted by the A.O. 1948.
6. Ins. by Act 65 of 1951, s. 32.
7. The words "operating a Federal Railway" omitted by the A.O. 1950.
8. Ins. by Act 47 of 1961, s. 51 and the Second Schedule, Part III (w.e.f. 1-1-1962).
9. Subs. by Act 36 of 1964, s. 2, for "the Deposit Insurance Corporation established" (w.e.f. 19-12-1964).
10. Subs. by Act 45 of 1971, s. 2 (w.e.f. 15-12-1971).
11. Subs. by Act 46 of 1982, s. 2 (w.e.f. 21-8-1984).
12. Subs. by Act 24 of 1996, s. 2, for "the Industrial Finance Corporation of India established under section 3 of the Industrial Finance Corporation Act, 1948."
13. The words and figures "or the "Indian Airlines" and "Air India" Corporations established under section 3 of the Indian Airlines Act, 1946."
14. Subs. by Act 24 of 1996, s. 2, for "the Oil and Natural Gas Commission established under section 3 of the Oil and Natural Gas Commission Act, 1957."

=== *CHUNK 15 END* ===

=== CHUNK 16 START ===

Title: CHAPTER I

Keywords: india, government, established, industrial, corporation, central, subs, bank

Semantic Category: Legal Act

- 6 Deposit Insurance and Credit Guarantee Corporation established under section 3 of the Deposit Insurance and Credit Guarantee Corporation Act, 1961.
2. Ins. by Act 53 of 1987, s. 56 and the Second Schedule (w.e.f. 9-7-1988).
3. Subs. by Act 54 of 1949, s. 3, for "a mine oil-field".
4. Subs. by Act 24 of 1996, s. 2, for "a banking or an insurance company" (w.e.f. 11-10-1996).
5. Ins. by Act 36 of 1964, s. 2 (w.e.f. 19-12-1964).
6. Subs. by Act 24 of 2010, s. 2, for "major port, the Central Government, and" (w.e.f. 15-9-2010).
7. Subs. by s. 2, *ibid.*, for sub-clause (ii) (w.e.f. 15-9-2010).
8. Ins. by Act 43 of 1953, s. 2 (w.e.f. 24-10-1953).
9. Clause (aa) re-lettered as clause (aaa) by Act 36 of 1964, s. 2 (w.e.f. 19-12-1964).
10. Subs. by Act 36 of 1956, s. 3, for clause (b) (w.e.f. 10-3-1957).
11. Subs. by Act 38 of 1959, s. 64 and the third Schedule, Part II, for clause (bb).
12. Ins. by Act 28 of 1981, s. 40 and the Second Schedule (w.e.f. 4-1-1982).

=== *CHUNK 16 END* ===

=== CHUNK 17 START ===

Title: CHAPTER I

Keywords: bank, industry, india, industrial, undertaking, establishment, board, conciliation

Semantic Category: Legal Act

13. Ins. by Act 62 of 1984, s. 71 and the Third Schedule (w.e.f. 20-3-1985).
7 1[2***,] 3[the Small Industries Development Bank of India established under section 3 of the Small Ind
6[(cc) "closure" means the permanent closing down of a place of employment or part thereof;] (d) "concil
(e) "conciliation proceeding" means any proceeding held by a conciliation officer or Board under this Ac
7[(ee) "controlled industry" means any industry the control of which by the Union has been declared by a
(g) "employer" means,- (i) in relation to an industry carried on by or under the authority of any depart
(ii) in relation to an industry carried on by or on behalf of a local authority, the chief executive off
10[(gg) "executive", in relation to a trade union, means the body, by whatever name called, to which the
12[Provided that no person shall cease to be independent by reason only of the fact that he is a shareho
2. The words "the Industrial Development Bank of India" omitted by Act 53 of 2003, s. 12 and the Schedul
3. Ins. by Act 39 of 1989, s. 53 and the Second Schedule (date to be notified).
4. Subs. by Act 5 of 1970, s. 20, for "and any subsidiary bank" (w.e.f. 19-7-1969).
5. Subs. by Act 40 of 1980, s. 20 (w.e.f. 15-4-1980).
6. Ins. by Act 46 of 1982, s. 2 (w.e.f. 21-8-1984).
7. Ins. by Act 65 of 1951, s. 32.
8. Omitted by Act 36 of 1964, s. 2 (w.e.f. 19-12-1964).
9. Subs. by the A.O. 1948, for "a Government in British India".
10. Ins. by Act 45 of 1971, s. 2 (w.e.f. 15-12-1971).
11. Clause (h) omitted by the A.O. 1950.
12. Ins. by Act 18 of 1952, s. 2.
8 1[(j) "industry" means any business, trade, undertaking, manufacture or calling of employers and inclu
(k) "industrial dispute" means any dispute or difference between employers and employees, or between emp
2[(ka) "industrial establishment or undertaking" means an establishment or undertaking in which any indu
Provided that where several activities are carried on in an establishment or undertaking and only one or

=== CHUNK 17 END ===

=== CHUNK 18 START ===

Title: CHAPTER I

Keywords: activity, carried, establishment, other, clause, predominant, activities, undertaking

Semantic Category: Legal Act

(b) if the predominant activity or each of the predominant activities carried on in such establishment or
(b) any activity relating to the promotion of sales or business or both carried on by an establishment,
Explanation:-For the purposes of this sub-clause, "agricultural operation" does not include any activity
2. Ins. by Act 46 of 1982, s. 2 (w.e.f. 21-8-1984).
3. Ins. by Act 54 of 1949, s. 3.
9 1[(kka) "khadi" has the meaning assigned to it in clause (d) of section 2 of the Khadi and Village Ind
Explanation.-Every workman whose name is borne on the muster rolls of the industrial establishment and w

=== *CHUNK 18 END* ===

=== CHUNK 19 START ===

Title: CHAPTER I

Keywords: public, service, employment, clause, provided, given, shift, half

Semantic Category: Legal Act

Provided that if the workman, instead of being given employment at the commencement of any shift for any
Provided further that if he is not given any such employment even after so presenting himself, he shall
7[(la) "major port" means a major port as defined in clause (8) of section 3 of the Indian Ports Act, 19
(lb) "mine" means a mine as defined in clause (j) of sub-section (1) of section 2 of the Mines Act, 1952
2[(ll) "National Tribunal" means a National Industrial Tribunal constituted under section 7B;] 8[(lll) "
(n) "public utility service" means- (i) any railway service 7[or any transport service for the carriage
8[(ia) any service in, or in connection with the working of, any major port 9[or dock or any industrial
(iii) any postal, telegraph or telephone service;
(iv) any industry which supplies power, light or water to the public;
(v) any system of public conservancy or sanitation;
1. Ins. by Act 46 of 1982, s. 2 (w.e.f. 21-8-1984).
2. Ins. by Act 36 of 1956, s. 3 (w.e.f. 10-3-1957).
3. Clause (kka) re-lettered as clause (kkb) by Act 46 of 1982, s. 2 (w.e.f. 21-8-1984).
4. Ins. by Act 43 of 1953, s. 2 (w.e.f. 24-10-1953).
5. Subs. by Act 46 of 1982, s. 2, for "or for any other reason" (w.e.f. 21-8-1984).
6. Subs. by s. 2, *ibid.*, for certain words (w.e.f. 21-8-1984).
7. Ins. by Act 36 of 1964, s. 2 (w.e.f. 19-12-1964).
8. Ins. by Act 45 of 1971, s. 2 (w.e.f. 15-12-1971).
9. Subs. by Act 25 of 2021, s. 17, for "or dock" (w.e.f. 30-6-2021).
10 (vi) any industry specified in the 1[First Schedule] which the appropriate Government may, if satisfi
Provided that the period so specified shall not, in the first instance, exceed six months but may, by a
(o) "railway company" means a railway company as defined in section 3 of the Indian Railways Act, 1890 (

=== CHUNK 19 END ===

=== CHUNK 20 START ===

Title: CHAPTER I

Keywords: workman, employment, employer, service, being, termination, contract, between

Semantic Category: Legal Act

2[(oo) "retrenchment" means the termination by the employer of the service of a workman for any reason w
6[(qq) "trade union" means a trade union registered under the Trade Unions Act, 1926 (16 of 1926);] 7[(r
(rb) "village industries" has the meaning assigned to it in clause (h) of section 2 of the Khadi and Vil
2. Ins. by Act 43 of 1953, s. 2 (w.e.f. 24-10-1953).
3. Ins. by Act 49 of 1984, s. 2 (w.e.f. 18-8-1984).
4. Subs. by Act 36 of 1956, s. 3, for clause (p) (w.e.f. 7-10-1956).
5. Ins. by Act 35 of 1965, s. 2 (w.e.f. 1-12-1965).
6. Ins. by Act 46 of 1982, s. 2 (w.e.f. 21-8-1984).
7. Subs. by Act 18 of 1957, s. 2, for clause (r) (w.e.f. 10-3-1957).
8. Ins. by Act 46 of 1982, s. 2 (w.e.f. 21-8-1984).
9. Ins. by Act 43 of 1953, s. 2 (w.e.f. 24-10-1953).
11 (i) such allowances (including dearness allowance) as the workman is for the time being entitled to;
(ii) the value of any house accommodation, or of supply of light, water, medical attendance or other ame
(iii) any travelling concession;
1[(iv) any commission payable on the promotion of sales or business or both;] but does not include- (a)
(b) any contribution paid or payable by the employer to any pension fund or provident fund or for the be

=== *CHUNK 20 END* ===

=== CHUNK 21 START ===

Title: CHAPTER I

Keywords: dispute, work, supervisory, workman, industrial, words, clerical, amendment

Semantic Category: Legal Act

(c) any gratuity payable on the termination of his service;] 2[(s) "workman" means any person (including
STATE AMENDMENT
Kerala Amendment of section 2.-In section 2 of the Industrial Disputes Act, 1947 (Central Act 14 of 1947
[Vide Kerala Act 12 of 2017, s. 2] Assam Amendment of section 2.-In the principal Act, in section 2, in
[Vide Assam Act 22 of 2007, s. 2] Orissa Amendment of section 2.-In clause(s) of section 2 of the Indust
[Vide Orissa Act 5 of 2014, s. 2] 4[2A. Dismissal, etc., of an individual workman to be deemed to be an
2. Subs. by s. 2, *ibid.*, for clause (s) (w.e.f. 21-8-1984).
3. Subs. by Act 24 of 2010, s. 2, for "one thousand six hundred rupees" (w.e.f. 15-9-2010).
4. Ins. by Act 35 of 1965, s. 3 (w.e.f. 1-12-1965).
5. Section 2A numbered as sub-section (1) thereof by Act 24 of 2010, s. 3 (w.e.f. 15-9-2010).
12 industrial dispute notwithstanding that no other workman nor any union of workmen is a party to the d
(3) The application referred to in sub-section (2) shall be made to the Labour Court or Tribunal before
STATE AMENDMENT

=== *CHUNK 21 END* ===

=== CHUNK 22 START ===

Title: CHAPTER I

Keywords: dispute, central, three, years, industrial, period, vide, existing

Semantic Category: Legal Act

Andhra Pradesh In Section 2A, After the existing sub-section (2), the following sub-section shall be added:-
Provided that the Labour Court or the Conciliation Officer, as the case may be, may consider to extend the period of three years.
[Vide Andhra Pradesh 12 of 2015, s. 2] Union Territory of Jammu and Kashmir and Ladakh
Section 2A.-In sub-section (3), for "three years", substitute "one year".
[Vide Union Territory of Jammu and Kashmir Reorganisation (Adaptation of Central Laws) Second Order, 2020]
Meghalaya Amendment of section 2 (s) of Industrial Disputes Act, 1947 (Central Act No. 14 of 1947).-For section 2 (s), substitute-
13 dispute, includes in connection with, or as a consequence of, that dispute, or whose dismissal, discharge or termination is a result of that dispute, or whose dismissal, discharge or termination is a result of that dispute.
[Vide Rajasthan Act 21 of 2014, s. 2] Amendment of section 2A, Central Act No. 14 of 1947.- In section 2A, after sub-section (2), the following sub-section shall be added:-
Provided that an authority, as may be specified by the State Government, may consider to extend the said period of three years.
[Vide Rajasthan Act 21 of 2014, s. 3] Rajasthan Amendment of section 2, Central Act XIV of 1947.-In section 2, after sub-section (2), the following sub-section shall be added:-

=== *CHUNK 22 END* ===

=== CHUNK 23 START ===

Title: Chapter III-A of this Act before an arbitrator, or (ii) any proceeding before an Industrial Tribunal in arbitration;

Keywords: arbitrator, before, arbitration, proceeding, industrial, tribunal, aaaa, whom

Semantic Category: Legal Act

Chapter III-A of this Act before an arbitrator, or (ii) any proceeding before an Industrial Tribunal in
(aaaa) "arbitrator" means an arbitrator to whom a dispute is referred for arbitration under the provision

=== CHUNK 23 END ===

=== CHUNK 24 START ===

Title: Chapter III-A of this Act and includes an umpire;" (ii) in clause (b), for the words, figures and letter "under section 10A", the words, figures and letter "under Chapter III-A" shall be substituted;

Keywords: clause, union, after, inserted, industry, words, following, namely

Semantic Category: Legal Act

Chapter III-A of this Act and includes an umpire;" (ii) in clause (b), for the words, figures and letter (iii) after clause (eee) the following new clause shall be inserted, namely- "(eeee) "member" means a person who has been elected as a member of the Union and is entitled to vote at the general meeting of the Union. Provided that no person shall at any time be deemed to be a member if his subscription is in arrears for more than three months." (iii) after clause (iii) the following new clause shall be inserted, namely- "(iiii) "member" means a person who has been elected as a member of the Union and is entitled to vote at the general meeting of the Union. Provided that no person shall at any time be deemed to be a member if his subscription is in arrears for more than three months." 14 (iv) in clause (g), after sub-clause (ii), the following sub-clause shall be inserted, namely- "(iii) (v) after clause (oo) the following new clauses shall be inserted, namely- "(ooo) "Registrar" means the Registrar of Companies; (oooo) "Representative Union" means a Union for the time being registered as a Representative Union under the Companies Act, 1956." (vi) after clause (rr), the following new clause shall be inserted, namely- "(rrr) "Union" means a Trade Union registered under the Trade Union Act, 1947." [Vide Rajasthan Act 34 of 1958, s. 3]

=== *CHUNK 24 END* ===

=== CHUNK 25 START ===

Title: CHAPTER II

Keywords: workmen, registrar, committee, special, representatives, unions, respect, state

Semantic Category: Legal Act

CHAPTER II

AUTHORITIES UNDER THIS ACT

3. Works Committee.-(1) In the case of any industrial establishment in which one hundred or more workmen

(2) It shall be the duty of the Works Committee to promote measures for securing and preserving amity and

STATE AMENDMENT

Manipur In section 3 of the Disturbed Areas (Special Courts) Act, 1976, (hereinafter referred to as the

(b) in sub-section (2)- (i) In clause (a) of the proviso, the word "and" appearing at the end shall be deleted

[Vide Manipur Act 11 of 1982, s. 2] Rajasthan Insertion of new section 3A, in Central Act XIV of 1947.-A

(2) The State Government may, by similar notification, appoint a person to be the Assistant Registrar of

=== *CHUNK 25 END* ===

=== **CHUNK 26 END** ===

=== CHUNK 27 START ===

Title: Chapter II-B in Central Act XIV of 1947.- After section 9B of the principal Act, the following new Chapter shall be inserted, namely:- "CHAPTER II-B Registration of Unions.

Keywords: industrial, government, appeal, registrar, union, registration, specified, tribunal

Semantic Category: Legal Act

(3) If, on the expiry of the period of notice under sub-section (1) and after holding such inquiry as he may think fit, the Registrar is satisfied that the Union has been formed in accordance with the provisions of this section, he shall register the Union and issue a certificate of registration to the Union. (4) Every application made under this section shall be published in the prescribed manner not less than thirty days before the date on which the Registrar is required to make his decision thereon. 9H. Application for re-registration.- (1) Any Union the registration of which has been cancelled on the ground that it was not formed in accordance with the provisions of this section may, at any time, apply to the Registrar for re-registration. (2) A Union the registration of which has been cancelled on any other ground shall, not, save with the previous sanction of the Registrar, be eligible for re-registration. 9I. Appeal to Industrial Tribunal from order of Registrar.- (1) Any party to a proceeding before the Registrar may, within the prescribed time, appeal to the Industrial Tribunal. Provided that the Industrial Tribunal may, for sufficient reason, admit any appeal made after the expiry of the prescribed time. (2) The Industrial Tribunal may admit an appeal under sub-section (1) if on a perusal of the memorandum of appeal it is satisfied that the appeal is not frivolous or vexatious. (3) The Industrial Tribunal in appeal, may confirm, modify or rescind any order passed by the Registrar. 17 9J. Publication of orders.- Every order passed under section 9E or section 9F or section 9G and every order made under section 9H or section 9I shall be published in the prescribed manner. (2) A conciliation officer may be appointed for a specified area or for specified industries in a specified area or for specified industries in a specified area. 5. Board of Conciliation.- (1) The appropriate Government may as occasion arises by notification in the Official Gazette, constitute a Board of Conciliation for the purpose of settling disputes between employers and workmen in any industry or class of industry. (2) A Board shall consist of a chairman and two or four other members, as the appropriate Government may think fit. (3) The chairman shall be an independent person and the other members shall be persons appointed in equal number from among the employers and workmen in the industry or class of industry. Provided that, if any party fails to make a recommendation as aforesaid within the prescribed time, the Board may proceed to settle the dispute. (4) A Board, having the prescribed quorum, may act notwithstanding the absence of the chairman or any of the other members. Provided that if the appropriate Government notifies the Board that the services of the chairman or of any of the other members are no longer required, the Board may act notwithstanding the absence of the chairman or any of the other members. 6. Courts of Inquiry.- (1) The appropriate Government may as occasion arises by notification in the Official Gazette, constitute a Court of Inquiry for the purpose of settling disputes between employers and workmen in any industry or class of industry.

=== CHUNK 27 END ===

=== **CHUNK 28 END** ===

=== CHUNK 29 START ===

Title: Chapter VI of the Finance Act, 2017, the jurisdiction, powers and authority conferred on the Tribunal referred to in section 7D of the Employees' Provident Funds and Miscellaneous Provisions Act, 1952 (19 of 1952).] (2) A Tribunal shall consist of one person only to be appointed by the appropriate Government.

Keywords: central, government, judge, industrial, clause, tribunal, disputes, officer

Semantic Category: Legal Act

Chapter VI of the Finance Act, 2017, the jurisdiction, powers and authority conferred on the Tribunal referred to in section 7D of the Employees' Provident Funds and Miscellaneous Provisions Act, 1952 (19 of 1952).] (3) A person shall not be qualified for appointment as the presiding officer of a Tribunal unless- (a) he has been a member of a Tribunal for not less than five years; or (b) he has been a member of a Tribunal for not less than five years. Provided that no such Deputy Chief Labour Commissioner or Joint Labour Commissioner shall be appointed unless he has been a member of a Tribunal for not less than five years. STATE AMENDMENT Karnataka Amendment of section 7A.-In sub-section (3) of section 7A of the Industrial Disputes Act, 1947 [Vide Karnataka Act 35 of 1963, s. 2] Kerala Amendment of Section 7A.-In sub-section (3) of section 7A of the Industrial Disputes Act, 1947 1. Ins. by Act 46 of 1982, s. 4 (w.e.f. 21-8-1984). 2. Ins. by Act 7 of 2017, s. 158 (w.e.f. 26-5-2017). 3. Ins. by Act 36 of 1964, s. 4 (w.e.f. 19-12-1964). 4. The word "or" omitted by Act 46 of 1982, s. 4 (w.e.f. 21-8-1984). 5. Ins. by Act 24 of 2010, s. 5 (w.e.f. 15-9-2010). 6. Clause (b) omitted by Act 46 of 1982, s. 4 (w.e.f. 21-8-1984). 19 [Vide Kerala Act 28 of 1961, s. 2] Orissa Amendment of section 7A (Act 14 of 1947).-In sub-section (3) of section 7A of the Industrial Disputes Act, 1947 (2) A National Tribunal shall consist of one person only to be appointed by the Central Government. (3) A person shall not be qualified for appointment as the presiding officer of a National Tribunal unless- (a) he has been a member of a National Tribunal for not less than five years; or (b) he has been a member of a National Tribunal for not less than five years. (4) The Central Government may, if it so thinks fit, appoint two persons as assessors to advise the National Tribunal.

=== CHUNK 29 END ===

=== CHUNK 30 START ===

Title: Chapter VI of the Finance Act, 2017, the jurisdiction, powers and authority conferred on the Tribunal referred to in section 7D of the Employees' Provident Funds and Miscellaneous Provisions Act, 1952 (19 of 1952).] (2) A Tribunal shall consist of one person only to be appointed by the appropriate Government.

Keywords: presiding, tribunals, officer, tribunal, labour, national, person, appointed

Semantic Category: Legal Act

7C. Disqualifications for the presiding officers of Labour Courts, Tribunals and National Tribunals. -No

=== CHUNK 30 END ===

=== CHUNK 31 START ===

Title: Chapter II of the said Act]:

Keywords: said, provided, presiding, officer, appointed, before, commencement, part

Semantic Category: Legal Act

Chapter II of the said Act]:

Provided that the Presiding Officer appointed before the commencement of Part XIV of

=== *CHUNK 31 END* ===

=== CHUNK 32 START ===

Title: Chapter VI of the Finance Act, 2017, shall continue to be governed by the provisions of this Act, and the rules made thereunder as if the provisions of section 184 of the Finance Act, 2017 had not come into force.] 4[8. Filling of vacancies.-If, for any reason a vacancy (other than a temporary absence) occurs in the office of the presiding officer of a Labour Court, Tribunal or National Tribunal or in the office of the chairman or any other member of a Board or Court, then, in the case of a National Tribunal, the Central Government and in any other case, the appropriate Government, shall appoint another person in accordance with the provisions of this Act to fill the vacancy, and the proceeding may be continued before the Labour Court, Tribunal, National Tribunal, Board or Court, as the case may be, from the stage at which the vacancy is filled.

Keywords: court, tribunal, other, national, board, government, provisions, vacancy

Semantic Category: Legal Act

- Chapter VI of the Finance Act, 2017, shall continue to be governed by the provisions of this Act, and th
- 9. Finality of orders constituting Boards, etc.-(1) No order of the appropriate Government or of the Cen
- 2. Ins. by Act 7 of 2017, s. 158 (w.e.f. 26-5-2017).
- 3. Subs. by Act 33 of 2021, s. 8, for "Part XIV of

=== *CHUNK 32 END* ===

=== CHUNK 33 START ===

Title: Chapter VI of the Finance Act, 2017 (7 of 2017), be governed by the provisions of section 184 of that Act" (w.e.f. 4-4-2021).

Keywords: board, settlement, arrived, proceeding, course, conciliation, invalid, reason

Semantic Category: Legal Act

Chapter VI of the Finance Act, 2017 (7 of 2017), be governed by the provisions of section 184 of that Act
4. Subs. by Act 36 of 1956, s. 5, for sections 8 and 9 (w.e.f. 10-3-1957).
20 on the ground merely of the existence of any vacancy in, or defect in the constitution of, such Board
(2) No settlement arrived at in the course of a conciliation proceeding shall be invalid by reason only
(3) Where the report of any settlement arrived at in the course of conciliation proceeding before a Board

=== *CHUNK 33 END* ===

=== CHUNK 34 START ===

Title: CHAPTER IIA

Keywords: change, rules, notice, workmen, government, class, industrial, service

Semantic Category: Legal Act

CHAPTER IIA

NOTICE OF CHANGE

9A. Notice of change.-No employer, who proposes to effect any change in the conditions of service applic

Provided that no notice shall be required for effecting any such change- (a) where the change is effecte

9B. Power of Government to exempt.-Where the appropriate Government is of opinion that the application o

=== *CHUNK 34 END* ===

=== CHUNK 35 START ===

Title: CHAPTER IIB

Keywords: grievance, redressal, committee, members, more, number, workmen, machinery

Semantic Category: Legal Act

CHAPTER IIB

GRIEVANCE REDRESSAL MACHINERY

9C. Setting up of Grievance Redressal Machinery.-(1) Every industrial establishment employing twenty or

(2) The Grievance Redressal Committee shall consist of equal number of members from the employer and the

(3) The chairperson of the Grievance Redressal Committee shall be selected from the employer and from am

(4) The total number of members of the Grievance Redressal Committee shall not exceed more than six:

Provided that there shall be, as far as practicable, one woman member if the Grievance Redressal Committ

(5) Notwithstanding anything contained in this section, the setting up of Grievance Redressal Committee

1. Ins. by Act 36 of 1956, s. 6 (w.e.f. 10-3-1957).

2. Subs. by Act 24 of 2010, s. 6, for

=== CHUNK 35 END ===

=== CHUNK 36 START ===

Title: Chapter IIB (w.e.f. 15-9-2010).

Keywords: rajasthan, amendment, grievance, redressal, date, central, words, months

Semantic Category: Legal Act

Chapter IIB (w.e.f. 15-9-2010).

3. Ins. by Act 46 of 1982, s. 7 (w.e.f. 21-8-1984).

21 (6) The Grievance Redressal Committee may complete its proceedings within thirty days on receipt of a

(7) The workman who is aggrieved of the decision of the Grievance Redressal Committee may prefer an appeal

(8) Nothing contained in this section shall apply to the workmen for whom there is an established Grievance

[Vide Rajasthan Act 14 of 1970, s. 2] Amendment of section 9E, Central Act 14 of 1947.-In section 9E of

[Vide Rajasthan Act 14 of 1970, s. 4] Amendment of

=== *CHUNK 36 END* ===

=== CHUNK 37 START ===

Title: Chapter II-B, Central Act No.14 of 1947.- Chapter II-B of the principal Act, as inserted by the Rajasthan Act No. 34 of 1958, shall be renumbered as “CHAPTER IIC”.

Keywords: rajasthan, words, central, principal, inserted, vide, amendment, after

Semantic Category: Legal Act

Chapter II-B, Central Act No.14 of 1947.- Chapter II-B of the principal Act, as inserted by the Rajasthan Act No. 34 of 1958, shall be renumbered as “CHAPTER IIC”.
[Vide Rajasthan Act 21 of 2014, s. 4] Amendment of section 9G, Central Act 14 of 1947.-In section 9G of the principal Act, as inserted by the Rajasthan Act No. 34 of 1958, shall be renumbered as “CHAPTER IIC”.
[Vide Rajasthan Act 14 of 1970, s. 5] Amendment of section 9C, Central Act No. 14 of 1947.- Section 9C of the principal Act, as inserted by the Rajasthan Act No. 34 of 1958, shall be renumbered as “CHAPTER IIC”.
[Vide Rajasthan Act 21 of 2014, s. 5] Amendment of section 9D, Central Act No. 14 of 1947.- In section 9D of the principal Act, as inserted by the Rajasthan Act No. 34 of 1958, shall be renumbered as “CHAPTER IIC”.
[Vide Rajasthan Act 21 of 2014, s. 6] 22

=== CHUNK 37 END ===

=== CHUNK 38 START ===

Title: CHAPTER III

Keywords: dispute, tribunal, government, court, industrial, labour, national, appropriate

Semantic Category: Legal Act

CHAPTER III

REFERENCE OF DISPUTES TO BOARDS, COURTS OR TRIBUNALS

10. Reference of disputes to Boards, Courts or Tribunals.-(1) 1[Where the appropriate Government is of o
Provided that where the dispute relates to any matter specified in the Third Schedule and is not likely

4[Provided also that where the dispute in relation to which the Central Government is the appropriate Go

7[(2A) An order referring an industrial dispute to a Labour Court, Tribunal or National Tribunal under t

Provided that where such industrial dispute is connected with an individual workman, no such period shal

Provided further that where the parties to an industrial dispute apply in the prescribed manner, whether

Provided also that in computing any period specified in this sub-section, the period, if any, for which

1. Subs. by Act 18 of 1952, s. 3, for "If any industrial dispute exists or is apprehended, the appropria

2. Subs. by Act 36 of 1956, s. 7, for clause (c) (w.e.f. 10-3-1957).

3. Subs. by s. 7, *ibid.*, for "Provided that" (w.e.f. 10-3-1957).

4. Ins. by Act 46 of 1982, s. 8 (w.e.f. 21-8-1984).

5. Ins. by Act 36 of 1956, s. 7 (w.e.f. 10-3-1957).

6. Subs. by Act 36 of 1956, s. 7, for "or Tribunal" (w.e.f. 10-3-1957).

=== CHUNK 38 END ===

=== CHUNK 39 START ===

Title: CHAPTER III

Keywords: tribunal, national, court, dispute, labour, government, before, appropriate

Semantic Category: Legal Act

7. Ins. by Act 46 of 1982, s. 8 (w.e.f. 21-8-1984).
23 Provided also that no proceedings before a Labour Court, Tribunal or National Tribunal shall lapse me
1[(4) Where in an order referring an industrial dispute to 2[a Labour Court, Tribunal or National Tribun
(5) Where a dispute concerning any establishment or establishments has been, or is to be, referred to a
6[Explanation.-In this sub-section, "Labour Court" or "Tribunal" includes any Court or Tribunal or other
2. Subs. by Act 36 of 1956, s. 7, for "a Tribunal" (w.e.f. 10-3-1957).
3. Subs. by s. 7, *ibid.*, for "the Tribunal" (w.e.f. 10-3-1957).
4. Subs. by s. 7, *ibid.*, for "Tribunal" (w.e.f. 10-3-1957).
5. Ins. by s. 7, *ibid.* (w.e.f. 10-3-1957).
6. Ins. by Act 36 of 1964, s. 5 (w.e.f. 19-12-1964).
7. Ins. by Act 46 of 1982, s. 8 (w.e.f. 21-8-1984).
24
STATE AMENDMENT

=== *CHUNK 39 END* ===

=== CHUNK 40 START ===

Title: CHAPTER III

Keywords: dispute, arbitration, industrial, disputes, amendment, referred, government, reference

Semantic Category: Legal Act

Karnataka Amendment of Central Act XIV of 1947.-(1) In section 10 of the Industrial Disputes Act, 1947,
(2) Section 10A of the Industrial Disputes Act, 1947, as inserted by the Industrial Disputes (Mysore Ame
[Vide Karnataka Act 1 of 1960, s. 2] Karnataka Amendment of section 10.-In the industrial Disputes Act,
Note.-An application under sub-section (4A), may be made even in respect of a dispute pending considerat
2[(1A) Where an arbitration agreement provides for a reference of the dispute to an even number of arbit
(3) A copy of the arbitration agreement shall be forwarded to the appropriate Government and the concili
2[(3A) Where an industrial dispute has been referred to arbitration and the appropriate Government is sa
2. Ins. by Act 36 of 1964, s. 6 (w.e.f. 19-12-1964).
3. Subs. by Act 36 of 1964, s. 6, for "fourteen days" (w.e.f. 19-12-1964).
25 may be prescribed; and when any such notification is issued, the employers and workmen who are not pa
2[(4A) Where an industrial dispute has been referred to arbitration and a notification has been issued u
STATE AMENDMENT

=== *CHUNK 40 END* ===

=== CHUNK 41 START ===

Title: CHAPTER III

Keywords: order, public, terms, conditions, employer, industrial, service, employment

Semantic Category: Legal Act

Kerala Insertion of new section 10B.-After section 10A of the Industrial Disputes Act, 1947 (Central Act) (b) for requiring any public utility service not to close or remain closed and to work or continue to work. Provided that no order made under this sub-section shall require any employer to observe terms and conditions. Explanation.-For the purposes of this sub-section "public utility service" means- (i) any section of an industry; (ii) any industry which supplies power, light or water to the public; (iii) any industry which has been declared by the State Government to be a public utility service for the purposes of this Act. (2) An order made under sub-section (1) shall cease to operate on the expiry of a period of six months from the date of its making. (3) Any money paid by an employer to any person in pursuance of any order under sub-section (1) may be deducted from the wages payable to that person. (b) for requiring any public utility service not to close or remain closed and to work or continue to work. Provident that no order made under this sub-section shall require any employer to observe terms and conditions.

=== *CHUNK 41 END* ===

=== CHUNK 42 START ===

Title: CHAPTER III

Keywords: order, industrial, public, state, government, tribunal, period, award

Semantic Category: Legal Act

Explanation.-For the purpose the this sub-section "public utility service" means,- (i) any section of an
(ii) any industry which supplies power, light or water to the public;
(iii) any industry which has been declared by the State Government to be a public utility service for the
(2) An order made under sub-section (1) shall cease to operate on the expiry of a period of six months from
(3) Any money paid by an employer to any person in pursuance of an order under sub-section (1), may be deemed to
[Vide Karnataka Act 5 of 1988, s. 3] Rajasthan Insertion of new section 10K. in Central Act 14 of 1947.-
(2) In case any industrial dispute is raised in respect of any provisions in the order of the State Government
Provided, however, that the reference of the industrial dispute to adjudication shall not have the effect of
[Vide Rajasthan Act 14 of 1970, s. 6] Insertion of new

=== *CHUNK 42 END* ===

=== CHUNK 43 START ===

Title: Chapter III-A in Central Act XIV of 1947.- For section 10A of the principal Act, the following new Chapter shall be inserted, namely:- "CHAPTER III-A.

Keywords: industrial, arbitrator, submission, dispute, tribunal, award, arbitration, parties

Semantic Category: Legal Act

Chapter III-A in Central Act XIV of 1947.- For section 10A of the principal Act, the following new Chapter shall be inserted, namely:- "CHAPTER III-A. Arbitration.

10B. Submission.- (1) Any employer and a Representative Union or, in the absence of any registered Representative Union, any workman, may submit a dispute to arbitration.

(2) A copy of every such submission shall be sent to the Registrar who shall register it in the register maintained by him.

10C. Submission when revocable.- Every submission shall in the absence of any provision to the contrary be deemed to be irrevocable.

Provided that a submission to refer future disputes to arbitration may at any time be revoked by any of the parties thereto.

Provided further that, before the expiry of the said period of three months the parties may agree to continue the submission.

10D. Proceedings in arbitration.- The proceedings in arbitration under this Chapter shall be in accordance with the rules made by the Registrar.

10E. Special case may be stated to Industrial Tribunal.- The arbitrator may refer any question of law arising out of the dispute to the Industrial Tribunal for its decision.

10F. Award by arbitrator.- The arbitrator shall, after hearing the parties concerned, make an award which shall be final and binding on the parties.

10G. Dispute to be referred to Industrial Tribunal if no arbitrator appointed.- Notwithstanding anything contained in the preceding provisions, if no arbitrator is appointed within the period of three months from the date of the submission, the dispute shall be referred to the Industrial Tribunal for adjudication.

10H. State Government may refer industrial dispute to Industrial Tribunal for adjudication.- (1) Notwithstanding anything contained in the preceding provisions, the State Government may refer any industrial dispute to the Industrial Tribunal for adjudication.

Provided that the State Government shall not refer a dispute to the Industrial Tribunal unless the District Officer or otherwise it is satisfied that-

(A) by reason of the continuance of the dispute-

(a) a serious industrial dispute has arisen, and

(2) When the State Government makes a reference to the Industrial Tribunal for adjudication of any industrial dispute, it shall also refer to the Industrial Tribunal the question of law arising out of the dispute.

10I. Notice of award to parties.- (1) The arbitrator or the Industrial Tribunal as an arbitrator, as the case may be, shall give notice of the award to the parties.

(2) On receipt of such award, the Registrar shall enter it in the register kept for the purpose.

10J. Completion of proceeding.- The arbitration proceeding shall be deemed to have completed when the award is given.

=== CHUNK 43 END ===

=== CHUNK 44 START ===

Title: CHAPTER IV

Keywords: tribunal, court, labour, national, civil, procedure, code, conciliation

Semantic Category: Legal Act

CHAPTER IV

PROCEDURE, POWERS AND DUTIES OF AUTHORITIES

11. Procedure and powers of conciliation officers, Boards, Courts and Tribunals.-1[(1) Subject to any rule made by the Council, the following powers shall be exercisable by a conciliation officer, a Board, a Court or a Tribunal, as the case may be, in relation to any dispute referred to it for conciliation, namely:-

(3) Every Board, Court, 3[Labour Court, Tribunal and National Tribunal] shall have the same powers as are conferred on a District Judge, in relation to the following matters, namely:-

(b) compelling the production of documents and material objects;

(c) issuing commissions for the examination of witnesses;

(d) in respect of such other matters as may be prescribed;

and every inquiry or investigation by a Board, Court, 4[Labour Court, Tribunal or National Tribunal], shall be conducted in accordance with the provisions of the following provisions, namely:-

(4) A conciliation officer 5[may enforce the attendance of any person for the purpose of examination of witnesses and may examine him on oath].

2. Subs. by Act 36 of 1956, s. 9, for "Court or Tribunal" (w.e.f. 10-3-1957).

3. Subs. by s. 9, ibid., for "and Tribunal" (w.e.f. 10-3-1957).

4. Subs. by s. 9, ibid., for "or Tribunal" (w.e.f. 10-3-1957).

5. Subs. by Act 46 of 1982, s. 9, for "may call for" (w.e.f. 21-8-1984).

6. Ins. by Act 36 of 1956, s. 9 (w.e.f. 17-9-1956).

29 Procedure, 1908 (5 of 1908), 1[in respect of enforcing the attendance of any person and examining him on oath].

2[(5) A Court, Labour Court, Tribunal or National Tribunal may, if it so thinks fit, appoint one or more persons to assist it in the discharge of its functions.]

(6) All conciliation officers, members of a Board or Court and the presiding officers of a Labour Court, shall be entitled to such allowances and other benefits as may be determined by the Council.

(7) Subject to any rules made under this Act, the costs of, and incidental to, any proceeding before a Labour Court, Tribunal or National Tribunal, shall be determined by the Council.

(10) The Labour Court or Tribunal or National Tribunal, as the case may be, shall transmit any award, or any recommendation, made by it, to the Council.

STATE AMENDMENT

=== *CHUNK 44 END* ===

=== CHUNK 45 START ===

Title: CHAPTER IV

Keywords: dispute, tribunal, conciliation, court, settlement, award, officer, labour

Semantic Category: Legal Act

Karnataka Amendment of section 11.-For sub-section (4) of section 11 of the principal Act, the following
(ii) compelling the production of documents;
(iii) issuing commission for examination of witness.
(4A) Whoever refuses or fails to attend or take part in a conciliation proceedings or fails or refuses to
2. Subs. by Act 36 of 1956, s. 9, for sub-sections (5) to (7) (w.e.f. 10-3-1957).
3. Ins. by Act 48 of 1950, s. 34 and the Schedule.
4. Subs. by Act 36 of 1956, s. 9, for "Tribunal" (w.e.f. 10-3-1957).
5. Subs. by Act 46 of 1982, s. 9, for certain words (w.e.f. 21-8-1984).
6. Ins. by Act 24 of 2010, s. 7 (w.e.f 15-9-2010).
30 punishable with imprisonment for a period which may extend to three months or with fine which may extend to
Provided that in any proceeding under this section the Labour Court, Tribunal or National Tribunal, as the case may be,
STATE AMENDMENT
Tamil Nadu Insertion of new section 11-B-After section 11-A of the Industrial Disputes act, 1947 (Central Industrial Disputes Act, 1947)
[Vide Tamil Nadu Act 19 of 2019, s. 2] 12. Duties of conciliation officers.-(1) Where any industrial dispute exists between employers and workmen, the conciliation officer shall, for the purpose of bringing about a settlement of the dispute, without prejudice to the provisions of any law for the time being in force, do all or any of the following things, namely:-
(2) The conciliation officer shall, for the purpose of bringing about a settlement of the dispute, without prejudice to the provisions of any law for the time being in force, do all or any of the following things, namely:-
(3) If a settlement of the dispute or of any of the matters in dispute is arrived at in the course of the proceedings, the conciliation officer shall, without prejudice to the provisions of any law for the time being in force, do all or any of the following things, namely:-

=== *CHUNK 45 END* ===

=== CHUNK 46 START ===

Title: CHAPTER IV

Keywords: dispute, settlement, appropriate, government, report, board, tribunal, period

Semantic Category: Legal Act

(4) If no such settlement is arrived at, the conciliation officer shall, as soon as practicable after the
(5) If, on a consideration of the report referred to in sub-section (4), the appropriate Government is satisfied
2. Ins. by Act 35 of 1965, s. 4 (w.e.f. 1-12-1965).
3. Subs. by Act 36 of 1956, s. 10, for "or Tribunal" (w.e.f. 10-3-1957).
31 may make such reference. Where the appropriate Government does not make such a reference it shall refer
(6) A report under this section shall be submitted within fourteen days of the commencement of the conciliation
1[Provided that, 2[subject to the approval of the conciliation officer,] the time for the submission of the report
(2) If a settlement of the dispute or of any of the matters in dispute is arrived at in the course of the conciliation
(3) If no such settlement is arrived at, the Board shall, as soon as practicable after the close of the conciliation
(4) If, on the receipt of a report under sub-section (3) in respect of a dispute relating to a public utility, the Board
(5) The Board shall submit its report under this section within two months of the date 4[on which the dispute
Provided that the appropriate Government may from time to time extend the time for the submission of the report
Provided further that the time for the submission of the report may be extended by such period as may be specified
14. Duties of Courts.-A Court shall inquire into the matters referred to it and report thereon to the appropriate
5[15. Duties of Labour Courts, Tribunals and National Tribunals.-Where an industrial dispute has been referred to a

=== CHUNK 46 END ===

=== CHUNK 47 START ===

Title: CHAPTER IV

Keywords: award, court, tribunal, report, board, subs, every, writing

Semantic Category: Legal Act

16. Form of report or award.-(1) The report of a Board or Court shall be in writing and shall be signed
Provided that nothing in this section shall be deemed to prevent any member of the Board or Court from r
1. Ins. by Act 36 of 1956, s. 10 (w.e.f. 17-9-1956).
2. Ins. by Act 36 of 1964, s. 8 (w.e.f. 19-12-1964).
3. Subs. by Act 36 of 1956, s. 11, for "Tribunal" (w.e.f. 10-3-1957).
4. Subs. by Act 40 of 1951, s. 6, for "of the notice under section 22".
5. Subs. by Act 36 of 1956, s. 12, for sections 15, 16, 17 and 17A (w.e.f. 10-3-1957).
6. Subs. by Act 46 of 1982, s. 10, for certain words (w.e.f. 21-8-1984).
32 (2) The award of a Labour Court or Tribunal or National Tribunal shall be in writing and shall be sig
17. Publication of reports and awards.-(1) Every report of a Board or Court together with any minute of
(2) Subject to the provisions of section 17A, the award published under sub-section (1) shall be final a
17A. Commencement of the award.-(1) An award (including an arbitration award) shall become enforceable o

=== *CHUNK 47 END* ===

=== CHUNK 48 START ===

Title: section 17:

Keywords: award, court, government, case, tribunal, order, workman, enforceable

Semantic Category: Legal Act

section 17:

Provided that- (a) if the appropriate Government is of opinion, in any case where the award has been given

(2) where any declaration has been made in relation to an award under the proviso to sub-section (1), that

(3) where any award as rejected or modified by an order made under sub-section (2) is laid before the Legislature

(4) Subject to the provisions of sub-section (1) and sub-section (3) regarding the enforceability of an award

Provided that where it is proved to the satisfaction of the High Court or the Supreme Court that such workman

1. Ins. by Act 46 of 1982, s. 11 (w.e.f. 21-8-1984).

2. Ins. by Act 36 of 1956, s. 13 (w.e.f. 7-10-1956).

33 (2) 1[Subject to the provisions of sub-section (3), an arbitration award] which has become enforceable

(b) all other parties summoned to appear in the proceedings as parties to the dispute, unless the Board, or

(c) where a party referred to in clause (a) or clause (b) is an employer, his heirs, successors or assigns

=== *CHUNK 48 END* ===

=== CHUNK 49 START ===

Title: section 17:

Keywords: award, period, date, parties, operation, settlement, party, dispute

Semantic Category: Legal Act

(d) where a party referred to in clause (a) or clause (b) is composed of workmen, all persons who were e
19. Period of operation of settlements and awards.-(1) A settlement 8*** shall come into operation on su
(2) Such settlement shall be binding for such period as is agreed upon by the parties, and if no such pe
10[(3) An award shall, subject to the provisions of this section, remain in operation for a period of on
Provided that the appropriate Government may reduce the said period and fix such period as it thinks fit
Provided further that the appropriate Government may, before the expiry of the said period, extend the p
(4) Where the appropriate Government, whether of its own motion or on the application of any party bound
2. Section 18 re-numbered as sub-section (3) of that section by Act 36 of 1956, s. 13 (w.e.f. 7-10-1956)
3. Ins. by Act 36 of 1964, s. 9 (w.e.f. 19-12-1964).
4. Subs. by Act 48 of 1950, s. 34 and the Schedule, for "an award which is declared by the appropriate G
5. Ins. by Act 36 of 1956, s. 13 (w.e.f. 10-3-1957).
6. Ins. by Act 36 of 1964, s. 9 (w.e.f. 19-12-1964).
7. Subs. by Act 36 of 1956, s. 13, for "or Tribunal" (w.e.f. 10-3-1957).
8. The words "arrived at in the course of a conciliation proceeding under this Act" omitted by Act 36 of
9. Ins. by s. 14, *ibid.* (w.e.f. 7-10-1956).
10. Subs. by Act 48 of 1950, s. 34 and the Schedule, for sub-section (3).
11. Ins. by Act 36 of 1956, s. 14 (w.e.f. 17-9-1956).
12. Subs. by s. 14, *ibid.*, for "to a Tribunal" (w.e.f. 10-3-1957).
34 such change, be shortened and the decision of 1[Labour Court or the Tribunal, as the case may be] on
(5) Nothing contained in sub-section (3) shall apply to any award which by its nature, terms or other ci
(6) Notwithstanding the expiry of the period of operation under sub-section (3), the award shall continu
3[(7) No notice given under sub-section (2) or sub-section (6) shall have effect, unless it is given by

=== CHUNK 49 END ===

=== CHUNK 50 START ===

Title: section 17:

Keywords: tribunal, court, subs, conciliation, officer, labour, national, board

Semantic Category: Legal Act

- (2) A conciliation proceeding shall be deemed to have concluded- (a) where a settlement is arrived at, w
(b) where no settlement is arrived at, when the report of the conciliation officer is received by the ap
(3) Proceedings 5[before an arbitrator under section 10A or before a Labour Court, Tribunal or National
21. Certain matters to be kept confidential.-There shall not be included in any report or award under th
Provided that nothing contained in this section shall apply to a disclosure of any such information for
1. Subs. by Act 36 of 1956, s. 14, for "the Tribunal" (w.e.f. 10-3-1957).
2. The words "subject to the provision for appeal omitted by s. 14, *ibid.* (w.e.f. 10-3-1957).
3. Ins. by Act 36 of 1964, s. 10 (w.e.f. 19-12-1964).
4. Subs. by Act 36 of 1956, s. 15, for "or Tribunal" (w.e.f. 10-3-1957).
5. Subs. by s. 15, *ibid.*, for "before a Tribunal" (w.e.f. 10-3-1957).
6. Subs. by s. 15, *ibid.*, for "reference of a dispute for adjudication" (w.e.f. 10-3-1957).
7. Subs. by Act 18 of 1952, s. 4, for certain words.
8. Subs. by Act 36 of 1956, s. 16, for "or Tribunal" (w.e.f. 10-3-1957).
9. Subs. by s. 16, *ibid.*, for "Court or Tribunal" (w.e.f. 10-3-1957).
35

=== *CHUNK 50 END* ===

=== CHUNK 51 START ===

Title: CHAPTER V

Keywords: lock, strike, proceedings, notice, before, illegal, days, during

Semantic Category: Legal Act

CHAPTER V

STRIKES AND LOCK-OUTS

22. Prohibition of strikes and lock-outs.-(1) No person employed in a public utility service shall go on strike. (2) No employer carrying on any public utility service shall lock-out any of his workmen- (a) without giving notice in writing to the Government, (b) without giving notice in writing to the workmen. (3) The notice of lock-out or strike under this section shall not be necessary where there is already in existence a strike or lock-out. (4) The notice of strike referred to in sub-section (1) shall be given by such number of persons to such number of persons as may be prescribed. (5) The notice of lock-out referred to in sub-section (2) shall be given in such manner as may be prescribed. (6) If on any day an employer receives from any persons employed by him any such notices as are referred to in sub-sections (1) and (2), he shall not be liable to be prosecuted under this section. 23. General prohibition of strikes and lock-outs.-No workman who is employed in any industrial establishment shall go on strike or be locked out- (a) during the pendency of proceedings before 1[a Labour Court, Tribunal or National Tribunal] and two months after the termination of such proceedings, (b) during the pendency of proceedings before a Labour Court, Tribunal or National Tribunal. 1. Subs. by Act 36 of 1956, s. 17, for "a Tribunal" (w.e.f. 10-3-1957). 2. The word "or" omitted by Act 36 of 1964, s. 11 (w.e.f. 19-12-1964). 3. Ins. by s. 11, ibid. (w.e.f. 19-12-1964). 36 24. Illegal strikes and lock-outs.-(1) A strike or a lock-out shall be illegal if- (i) it is commenced in contravention of section 22, (ii) it is commenced in contravention of section 23, (iii) it is commenced in contravention of section 25. (2) Where a strike or lock-out in pursuance of an industrial dispute has already commenced and is in existence on the date of the commencement of the Industrial Disputes Act, 1947, it shall not be deemed to be illegal. (3) A lock-out declared in consequence of an illegal strike or a strike declared in consequence of an illegal lock-out shall be deemed to be illegal. 25. Prohibition of financial aid to illegal strikes and lock-outs.-No person shall knowingly expend or contribute to the expenditure of any money for the purpose of maintaining or promoting an illegal strike or lock-out. 3[

=== CHUNK 51 END ===

Title: CHAPTER VA LAY-OFF AND RETRENCHMENT 25A. Application of sections 25C to 25E.-(1) Sections 25C to 25E inclusive 4[shall not apply to industrial establishments to which Chapter VB applies, or-] (a) to industrial establishments in which less than fifty workmen on an average per working day have been employed in the preceding calendar month; or (b) to industrial establishments which are of a seasonal character or in which work is performed only intermittently.

Semantic Category: Legal Act

=== **CHUNK 52 END** ===

=== CHUNK 53 START ===

Title: CHAPTER VA LAY-OFF AND RETRENCHMENT 25A. Application of sections 25C to 25E.-(1) Sections 25C to 25E inclusive 4[shall not apply to industrial establishments to which Chapter VB applies, or-] (a) to industrial establishments in which less than fifty workmen on an average per working day have been employed in the preceding calendar month; or (b) to industrial establishments which are of a seasonal character or in which work is performed only intermittently.

Keywords: workman, establishment, employer, compensation, workmen, service, notice, paid

Semantic Category: Legal Act

Provided further that it shall be lawful for the employer in any case falling within the foregoing provisions of section 25A to lay-off a workman for a period not exceeding fifteen days. Explanation.-"Badli workman" means a workman who is employed in an industrial establishment in the place of a workman who has been laid-off or retrenched. 1. Subs. by Act 35 of 1965, s. 5, for section 25C (w.e.f. 1-12-1965). 38 25E. Workmen not entitled to compensation in certain cases.-No compensation shall be paid to a workman (ii) if he does not present himself for work at the establishment at the appointed time during normal working hours; (iii) if such laying-off is due to a strike or slowing-down of production on the part of workmen in another industrial establishment. 25F. Conditions precedent to retrenchment of workmen.-No workman employed in any industry who has been in the service of the employer for a period of not less than one year shall be retrenched unless 1* * * * (b) the workman has been paid, at the time of retrenchment, compensation which shall be equivalent to the compensation payable to him under section 25D. STATE AMENDMENT Union Territory of Jammu and Kashmir and Ladakh Section 25F.-In clause (b), for "fifteen days", substitute "thirty days" [Vide Union Territory of Jammu and Kashmir Reorganisation (Adaptation of Central Laws) Second Order, 2020] Provided that nothing in this section shall apply to a workman in any case where there has been a change of employer. 1. The proviso omitted by Act 49 of 1984, s. 3 (w.e.f. 18-8-1984). 2. Subs. by Act 36 of 1964, s. 14, for "for every completed year of service" (w.e.f. 19-12-1964). 3. Ins. by s. 14, ibid. (w.e.f. 19-12-1964).

=== CHUNK 53 END ===

=== CHUNK 54 START ===

Title: CHAPTER VA LAY-OFF AND RETRENCHMENT 25A. Application of sections 25C to 25E.-(1) Sections 25C to 25E inclusive 4[shall not apply to industrial establishments to which Chapter VB applies, or-] (a) to industrial establishments in which less than fifty workmen on an average per working day have been employed in the preceding calendar month; or (b) to industrial establishments which are of a seasonal character or in which work is performed only intermittently.

Keywords: undertaking, workman, down, employer, service, compensation, closure, closed

Semantic Category: Legal Act

4. Subs. by Act 18 of 1957, s. 3, for section 25FF (w.e.f. 28-11-1956).
- 39 (b) the terms and conditions of service applicable to the workman after such transfer are not in any and (c) the new employer is, under the terms of such transfer or otherwise, legally liable to pay to the 1[25FFA. Sixty days' notice to be given of intention to close down any undertaking.-(1) An employer who Provided that nothing in this section shall apply to- (a) an undertaking in which- (i) less than fifty w (2) Notwithstanding anything contained in sub-section (1), the appropriate Government may, if it is sati Provided that where the undertaking is closed down on account of unavoidable circumstances beyond the co 2[Explanation.-An undertaking which is closed down by reason merely of- (i) financial difficulties (incl shall not be deemed to be closed down on account of unavoidable circumstances beyond the control of the (b) the service of the workman has not been interrupted by such alternative employment; and (c) the empl
1. Ins. by Act 32 of 1972, s. 2.
2. Subs. by Act 45 of 1971, s. 4, for the Explanation (w.e.f. 15-12-1971).
3. Ins. by s. 4, ibid. (w.e.f. 15-12-1971).

=== CHUNK 54 END ===

=== CHUNK 55 START ===

Title: CHAPTER VA LAY-OFF AND RETRENCHMENT 25A. Application of sections 25C to 25E.-(1) Sections 25C to 25E inclusive 4[shall not apply to industrial establishments to which Chapter VB applies, or-] (a) to industrial establishments in which less than fifty workmen on an average per working day have been employed in the preceding calendar month; or (b) to industrial establishments which are of a seasonal character or in which work is performed only intermittently.

Keywords: workman, other, entitled, retrenched, workmen, provisions, industrial, employer

Semantic Category: Legal Act

40 (1B) For the purposes of sub-sections (1) and (1A), the expressions "minerals" and "mining operations"
25H. Re-employment of retrenched workmen.-Where any workmen are retrenched, and the employer proposes to
25-I. [Recovery of moneys due from employres under this chapter.] Rep. by the Industrial Disputes (Amend
25J. Effect of laws inconsistent with this Chapter.-(1) The provisions of this Chapter shall have effect
3[Provided that where under the provisions of any other Act or rules, orders or notifications issued the

=== CHUNK 55 END ===

=== CHUNK 56 START ===

Title: CHAPTER VB

Keywords: special, provisions, relating, retrenchment, closure, certain, establishments, application

Semantic Category: Legal Act

CHAPTER VB
SPECIAL PROVISIONS RELATING TO LAY-OFF, RETRENCHMENT AND CLOSURE IN CERTAIN
ESTABLISHMENTS
25K. Application of

=== *CHUNK 56 END* ===

=== CHUNK 57 START ===

Title: Chapter VB.-(1) The provisions of this Chapter shall apply to an industrial establishment (not being an establishment of a seasonal character or in which work is performed only intermittently) in which not less than 5[one hundred] workmen were employed on an average per working day for the preceding twelve months.

Keywords: subs, establishment, industrial, seasonal, character, work, performed, only

Semantic Category: Legal Act

Chapter VB.-(1) The provisions of this Chapter shall apply to an industrial establishment (not being an
(2) If a question arises whether an industrial establishment is of a seasonal character or whether work
1. Subs. by Act 36 of 1964, s. 15, for "completed year of service" (w.e.f. 19-12-1964).
2. Subs. by s. 16, *ibid.*, for certain words (w.e.f. 19-12-1964).
3. Subs. by Act 36 of 1964, s. 17, for the proviso (w.e.f. 19-12-1964).
4. Ins. by Act 32 of 1976, s. 2 (w.e.f. 5-3-1976).
5. Subs. by Act 46 of 1982, s. 12, for "three hundred" (w.e.f. 21-8-1984).
41
STATE AMENDMENT
Andhra Pradesh In Section 25K The following shall be substituted, namely:- "25-K.Application of

=== *CHUNK 57 END* ===

=== CHUNK 58 START ===

Title: Chapter V-B:-(1) The provisions of this chapter shall apply to an industrial establishment (not being an establishment of a seasonal character or in which work is performed only intermittently) in which not less than three hundred workmen were employed on an average per working day for the preceding twelve months.

Keywords: hundred, industrial, establishment, workmen, notification, vide, provisions, less

Semantic Category: Legal Act

Chapter V-B:-(1) The provisions of this chapter shall apply to an industrial establishment (not being an
(2) Without prejudice to the provisions of sub-section (1), the State Government, may, if satisfied that
(3) If a question arises whether an industrial establishment is of a seasonal character or whether work
[Vide Assam Act 22 of 2018, s. 2] Karnataka Amendment of section 25K.-In section 25K of the principal Act
[Vide the Orissa Act 6 of 1983, s. 2] Union Territory of Jammu and Kashmir and Ladakh
Section 25K.--In sub-section (1), for "one hundred", substitute "three hundred".
[Vide Union Territory of Jammu and Kashmir Reorganisation (Adaptation of Central Laws) Second Order, 2020
Rajasthan Amendment of section 25-k, Central Act No. 14 of 1947.- After sub-section (1) of section 25-k

=== *CHUNK 58 END* ===

=== CHUNK 59 START ===

Title: Chapter VB.- (1) The provisions of this Chapter shall apply to an industrial establishment (not being an establishment of a seasonal character or in which work is performed only intermittently) in which not less than three hundred workmen were employed on an average per working day for the preceding twelve months.

Keywords: government, industrial, establishment, clause, hundred, less, workmen, notification

Semantic Category: Legal Act

Chapter VB.- (1) The provisions of this Chapter shall apply to an industrial establishment (not being an
(2) Without prejudice to the provisions of sub-section (1), the State Government may, if satisfied that
(3) If a question arises whether an industrial establishment is of a seasonal character or whether work
[Vide Rajasthan Act 21 of 2014, s. 7] Gujarat Amendment of section 25K of XIV of 1947.-In the Industrial
(ii) after sub-section (1), the following sub-section shall be inserted, namely:- "(1A) Without prejudic
[Vide Gujarat Act 1 of 2021, s. 2] 25L. Definitions.-For the purposes of this Chapter,- (a) "industrial
(ii) a mine as defined in clause (i) of sub- section (1) of section 2 of the Mines Act, 1952 (35 of 1952
(b) notwithstanding anything contained in sub-clause (ii) of clause (a) of section 2,- (i) in relation t
Rajasthan Amendment of section 25-L, Central Act No. 14 of 1947.---In clause (b) of section 25-L of the
[Vide Rajasthan Act 8 of 1984, s. 3] 25M. Prohibition of lay-off.-(1) No workman (other than a badli wor
2[(2) An application for permission under sub-section (1) shall be made by the employer in the prescribe

=== CHUNK 59 END ===

=== CHUNK 60 START ===

Title: Chapter VB.- (1) The provisions of this Chapter shall apply to an industrial establishment (not being an establishment of a seasonal character or in which work is performed only intermittently) in which not less than three hundred workmen were employed on an average per working day for the preceding twelve months.

Keywords: permission, employer, order, workmen, establishment, specified, made, workman

Semantic Category: Legal Act

(3) Where the workman (other than badli workmen or casual workmen) of an industrial establishment, being
(4) Where an application for permission under sub-section (1) or sub-section (3) has been made, the appr
(5) Where an application for permission under sub-section (1) or sub-section (3) has been made and the a
(6) An order of the appropriate Government or the specified authority granting or refusing to grant perm
(7) The appropriate Government or the specified authority may, either on its own motion or on the applic
Provided that where a reference has been made to a Tribunal under this sub-section, it shall pass an awa
(8) Where no application for permission under sub-section (1) is made, or where no application for permi
2. Subs. by Act 49 of 1984, s. 4, for sub-sections (2) to (5) (w.e.f. 18-8-1984).
44 workmen had been laid-off and the workmen shall be entitled to all the benefits under any law for the
(9) Notwithstanding anything contained in the foregoing provisions of this section, the appropriate Gove
Explanation.-For the purposes of this section, a workman shall not be deemed to be laid-off by an employ
STATE AMENDMENT

=== CHUNK 60 END ===

=== CHUNK 61 START ===

Title: Chapter VB.- (1) The provisions of this Chapter shall apply to an industrial establishment (not being an establishment of a seasonal character or in which work is performed only intermittently) in which not less than three hundred workmen were employed on an average per working day for the preceding twelve months.

Keywords: employer, application, permission, workman, expression, reasons, made, authority

Semantic Category: Legal Act

Rajasthan Amendment of section 25-M, Central Act No. 14 of 1947.- In section 25-M of the principle Act, -
(b) in sub-section (2), for the expression "(Amendment) Act, 1976" the expression "(Rajasthan Amendment)"
(c) for the existing sub-section (3), the following sub-sections shall be substituted, namely:- "(3) In
(4) Where an application for permission has been made under sub-section (1) or sub-section (2), the auth
(d) the existing sub-section (4) shall be re-numbered as sub-section (5) thereof;
(e) after sub-section (5) as so re-numbered the following sub-section shall be inserted, namely:- "(6) A
(7) The authority specified under sub-section (1) may, either of its own motion or on the application ma
1. Sub-section (6) re-numbered as sub-section (10) by s. 4, *ibid.*, (w.e.f. 18-8-1984).
45 Provided that where a reference has been made to a Labour Court under this sub-section, it shall pass
[Vide Rajasthan Act 8 of 1984, s. 4] 1[25N. Conditions precedent to retrenchment of workmen.- (1) No work
(2) An application for permission under sub-section (1) shall be made by the employer in the prescribed
(3) Where an application for permission under sub-section (1) has been made, the appropriate Government

=== *CHUNK 61 END* ===

=== CHUNK 62 START ===

Title: Chapter VB.- (1) The provisions of this Chapter shall apply to an industrial establishment (not being an establishment of a seasonal character or in which work is performed only intermittently) in which not less than three hundred workmen were employed on an average per working day for the preceding twelve months.

Keywords: permission, government, order, retrenchment, authority, employer, workman, application

Semantic Category: Legal Act

(4) Where an application for permission has been made under sub-section (1) and the appropriate Government
(5) An order of the appropriate Government or the specified authority granting or refusing to grant perm
(6) The appropriate Government or the specified authority may, either on its own motion or on the applic
Provided that where a reference has been made to a Tribunal under this sub-section, it shall pass an awa
(7) Where no application for permission under sub-section (1) is made, or where the permission for any r
(8) Notwithstanding anything contained in the foregoing provisions of this section, the appropriate Gove
1. Subs. by Act 49 of 1984, s. 5, for section 25N (w.e.f. 18-8-1984).
46 (9) Where permission for retrenchment has been granted under sub-section (3) or where permission for
STATE AMENDMENT
Rajasthan Amendment of section 25-N, Central Act No. 14 of 1947.--In section 25-N of the principle Act,-
(b) for sub-section (2), the following sub-section shall be substituted, namely:- "(2) On receipt of a n

=== CHUNK 62 END ===

=== CHUNK 63 START ===

Title: Chapter VB.- (1) The provisions of this Chapter shall apply to an industrial establishment (not being an establishment of a seasonal character or in which work is performed only intermittently) in which not less than three hundred workmen were employed on an average per working day for the preceding twelve months.

Keywords: expression, workman, amendment, word, order, authority, rajasthan, state

Semantic Category: Legal Act

(c) in sub-section (4), for the expression "(Amendment) Act, 1976", the expression "(Rajasthan Amendment
(d) in sub-section (5), for the word "appropriate", the word "State" shall be substituted;
(e) after sub-section (5), the following sub-section shall be inserted, namely:- "(6) An order of the St
(7) The State Government or, as the case may be, the authority may, either on its own motion or on the a
Provided that where a reference has been made to a Tribunal under this sub-section, it shall pass an awa
(f) the existing sub-sections (6) and (7) shall respectively be re-numbered as sub- sections (8) and (9)
(ii) the expression "or the Central Government" shall be deleted;
47 (iii) for the word "appropriate", wherever occurring, the word "State" shall be substituted; and (iv)
Provided that such authority as aforesaid may, either on its own motion or on the application made by th
[Vide Rajasthan Act 8 of 1984, s. 5] Rajasthan Amendment of section 25N, Central Act No. 14 of 1947.- In
[Vide Rajasthan Act 21 of 2014, s. 8] Gujarat Amendment of section 25N of XIV of 1947.- In the principal
(ii) in sub-section (9), the words "and an amount equivalent to his last three months average pay" shall
[Vide Gujarat Act 1 of 2021, s. 3] 1[25-0. Procedure for closing down an undertaking.-(1) An employer wh
Provided that nothing in this sub-section shall apply to an undertaking set up for the construction of b

=== CHUNK 63 END ===

=== CHUNK 64 START ===

Title: Chapter VB.- (1) The provisions of this Chapter shall apply to an industrial establishment (not being an establishment of a seasonal character or in which work is performed only intermittently) in which not less than three hundred workmen were employed on an average per working day for the preceding twelve months.

Keywords: permission, employer, order, undertaking, application, closure, made, appropriate

Semantic Category: Legal Act

(2) Where an application for permission has been made under sub-section (1), the appropriate Government,
(3) Where an application has been made under sub-section (1) and the appropriate Government does not comply with the application within the period specified therein, the application shall be deemed to have been refused.
1. Subs. by Act 46 of 1982, s. 14, for section 25-0 (w.e.f. 21-8-1984).
48 (4) An order of the appropriate Government granting or refusing to grant permission shall, subject to the provisions of this section, be final.
(5) The appropriate Government may, either on its own motion or on the application made by the employer, order the closure of an undertaking if it is satisfied that the closure is necessary in the public interest.
Provided that where a reference has been made to a Tribunal under this sub-section, it shall pass an award on the basis of the findings of the Tribunal.
(6) Where no application for permission under sub-section (1) is made within the period specified therein, the appropriate Government may, on its own motion, order the closure of an undertaking.
(7) Notwithstanding anything contained in the foregoing provisions of this section, the appropriate Government may, on its own motion, order the closure of an undertaking if it is satisfied that the closure is necessary in the public interest.
(8) Where an undertaking is permitted to be closed down under sub-section (2) or where permission for closure has been refused under sub-section (1), the appropriate Government may, on its own motion, order the closure of the undertaking.
STATE AMENDMENT
Orissa Amendment of section 25-0.-For section 25-0 of the principal Act, the following section shall be substituted, namely:-
Provided that nothing in this sub-section shall apply to an undertaking set up for the construction of buildings or for the manufacture of goods or for the supply of services.
(2) where an application for permission has been made under sub-section (1), the appropriate Government

=== CHUNK 64 END ===

=== CHUNK 65 START ===

Title: Chapter VB.- (1) The provisions of this Chapter shall apply to an industrial establishment (not being an establishment of a seasonal character or in which work is performed only intermittently) in which not less than three hundred workmen were employed on an average per working day for the preceding twelve months.

Keywords: permission, undertaking, application, order, employer, made, government, period

Semantic Category: Legal Act

- (3) Where an application has been made under sub-section (1) and the appropriate Government does not com
- (4) An order of the appropriate Government granting or refusing to grant permission shall, subject to th
- 49 (5) The appropriate Government may, either on its own motion or on the application made by the employ
- Provided that where a reference has been made to a Tribunal under this sub section, it shall pass an awa
- (6) Where no application for permission under sub-section (1) is made within the period specified therei
- (7) Notwithstanding anything contained in the foregoing provisions of this section, the appropriate Gove
- (8) Where an undertaking is permitted to be close down under sub-section (2) or where permission for clo
- [Vide the Orissa Act 6 of 1983, s. 3] Substitution of section 25-0, Central Act No. 14 of 1947:-For sect
- (2) where an application for permission has been made under sub-section (1), and the State Government af
- (3) Where an application has been made under sub-section (1), and the State Government does not communic

=== *CHUNK 65 END* ===

=== CHUNK 66 START ===

Title: Chapter VB.- (1) The provisions of this Chapter shall apply to an industrial establishment (not being an establishment of a seasonal character or in which work is performed only intermittently) in which not less than three hundred workmen were employed on an average per working day for the preceding twelve months.

Keywords: undertaking, order, closed, down, employer, before, industrial, permission

Semantic Category: Legal Act

- (4) An order of the State Government granting or refusing to grant permission shall, subject to the prov
- (5) The State Government may, either on its own motion or on the application made by the employer or any
- Provided that where a reference has been made to a Tribunal under this sub-section, it shall pass an awa
- (6) Where no application for permission under sub-section (1) is made within the period specified therei
- (7) Notwithstanding anything contained in the foregoing provision of this section, the State Government
- (8) Where an undertaking is permitted to be closed down under sub-section (2) or where permission for cl
- [Vide Rajasthan Act 8 of 1984, s. 6] Rajasthan Amendment of section 25-0, Central Act No. 14 of 1947.- I
- [Vide Rajasthan Act 21 of 2014, s. 9] 25P. Special provision as to restarting of undertakings closed dow
- (b) that there are possibilities of restarting the undertaking;
- (c) that it is necessary for the rehabilitation of the workmen employed in such undertaking before its c
- Rajasthan Substitution of section 25-P, Central Act No. 14 of 1947:- For section 25-P of the principle A

=== CHUNK 66 END ===

=== CHUNK 67 START ===

Title: Chapter VB.- (1) The provisions of this Chapter shall apply to an industrial establishment (not being an establishment of a seasonal character or in which work is performed only intermittently) in which not less than three hundred workmen were employed on an average per working day for the preceding twelve months.

Keywords: order, workman, undertaking, employer, tribunal, industrial, retrenched, made

Semantic Category: Legal Act

(b) there are possibilities of restarting the undertaking;
(c) it is necessary for the rehabilitation of the workmen employed in such undertaking before its closure;
(2) An order of the State Government directing the restarting of the undertaking under sub-section (1) shall be made only if the following conditions are satisfied, namely:—
(3) The State Government may either on its own motion or on the application made by the employer and after consulting the Tribunal, make an order under sub-section (1) if it is satisfied that—
Provided that where a reference has been made to a Tribunal under this sub-section, it shall pass an award if—
(b) the retrenchment was by way of victimisation and unfair labour practice; and (c) the reinstatement of the workmen is not feasible;
(2) An order of the State Government under sub-section (1), subject to the order passed by it as a result of a reference made to a Tribunal under this sub-section, shall be made only if the following conditions are satisfied, namely:—
(3) The State Government may, either on its own motion or on the application made by the employer or the workmen, make an order under sub-section (1) if it is satisfied that—
Provided that where a reference has been made to a Tribunal under this sub-section, it shall pass an award if—
[Vide Rajasthan Act 8 of 1984, s. 8] Gujarat Amendment of section 25-0 of XIV of 1947.-In the principal

=== *CHUNK 67 END* ===

=== CHUNK 68 START ===

Title: Chapter VB.- (1) The provisions of this Chapter shall apply to an industrial establishment (not being an establishment of a seasonal character or in which work is performed only intermittently) in which not less than three hundred workmen were employed on an average per working day for the preceding twelve months.

Keywords: extend, contravenes, order, permission, fine, thousand, rupees, direction

Semantic Category: Legal Act

[Vide Gujarat Act 1 of 2021, s. 4] 52 25Q. Penalty for lay-off and retrenchment without previous permission

STATE AMENDMENT

Rajasthan Substitution of section 25-Q Central Act No 14 of 1947.- For section 25-Q of the principle Act

[Vide Rajasthan Act 8 of 1984, s. 9] 25R. Penalty for closure.-(1) Any employer who closes down an undertaking

(2) Any employer, who contravenes 2[an order refusing to grant permission to close down an undertaking u

3* * * * *

STATE AMENDMENT

Orissa Amendment of section 25-R.-In section 25-R of the principal Act;- (a) in sub-section (2), for the

(b) Sub-section (3) shall be omitted.

[Vide the Orissa Act 6 of 1983, s. 4] 1. Certain words omitted by Act 49 of 1984, s. 6 (w.e.f. 18-8-1984)

2. Subs. by Act 46 of 1982, s. 15, for certain words (w.e.f. 21-8-1984).

3. Sub-section (3) omitted by s. 15, ibid. (w.e.f. 21-8-1984).

53 Rajasthan Amendment of section 25-R, Central Act No. 14 of 1947:- In section 25-R of the principle Act

[Vide Rajasthan Act 8 of 1984, s. 10] 25S. Certain provisions of

=== *CHUNK 68 END* ===

=== CHUNK 69 START ===

Title: Chapter VA to apply to an industrial establishment to which this Chapter applies.-The provisions of sections 25B, 25D, 25FF, 25G, 25H, and 25J in Chapter VA shall, so far as may be, apply also in relation to an industrial establishment to which the provisions of this Chapter apply.] Rajasthan Amendment of section 25-S, Central Act No. 14 of 1947:-In section 25-S of the principle Act, after the expression “provisions of this Chapter apply”, the expression “or are applied under sub-section (1-A) of section 25-k” shall be added.

Keywords: apply, provisions, industrial, establishment, rajasthan, expression, applies, sections

Semantic Category: Legal Act

Chapter VA to apply to an industrial establishment to which this Chapter applies.-The provisions of sect
[Vide Rajasthan Act 8 of 1984, s. 11] 1[

=== *CHUNK 69 END* ===

=== CHUNK 70 START ===

Title: CHAPTER VC

Keywords: unfair, labour, practice, practices, extend, prohibition, employer, workman

Semantic Category: Legal Act

CHAPTER VC

UNFAIR LABOUR PRACTICES

25T. Prohibition of unfair labour practice.-No employer or workman or a trade union, whether registered

25U. Penalty for committing unfair labour practices.-Any person who commits any unfair labour practice s

=== *CHUNK 70 END* ===

=== CHUNK 71 START ===

Title: CHAPTER VI

Keywords: extend, fine, punishable, term, penalty, imprisonment, rupees, both

Semantic Category: Legal Act

CHAPTER VI

PENALTIES

26. Penalty for illegal strikes and lock-outs.-(1) Any workman who commences, continues or otherwise acts

(2) Any employer who commences, continues, or otherwise acts in furtherance of a lock-out which is illeg

27. Penalty for instigation, etc.-Any person who instigates or incites others to take part in, or otherw

28. Penalty for giving financial aid to illegal strikes and lock-outs.-Any person who knowingly expends

1. Ins. by Act 46 of 1982, s. 16 (w.e.f. 21-8-1984).

54 1[29. Penalty for breach of settlement or award.-Any person who commits a breach of any term of any s

STATE AMENDMENT

Kerala Insertion of new section 29A.-After section 29 of the principal Act, the following section shall

3[30A. Penalty for closure without notice.-Any employer who closes down any undertaking without complyin

STATE AMENDMENT

Rajasthan Insertion of new section 30A in Central Act 14 of 1947.- After section 30 of the principal Act

[Vide Rajasthan Act 14 of 1970, s. 7] 31. Penalty for other offences.-(1) Any employer who contravenes t

(2) Whoever contravenes any of the provisions of this Act or any rule made thereunder shall, if no other

STATE AMENDMENT

Union Territory of Jammu and Kashmir and Ladakh Insertion of new section---After section 31, insert- 1.

=== CHUNK 71 END ===

=== CHUNK 72 END ===

=== CHUNK 73 START ===

Title: CHAPTER VII

Keywords: dispute, workmen, workman, proceeding, protected, before, concerned, employer

Semantic Category: Legal Act

CHAPTER VII

MISCELLANEOUS

32. Offence by companies, etc.-Where a person committing an offence under this Act is a company, or other

1[33. Conditions of service, etc., to remain unchanged under certain circumstances during pendency of pr

(2) During the pendency of any such proceeding in respect of an industrial dispute, the employer may, in

Provided that no such workman shall be discharged or dismissed, unless he has been paid wages for one mo

(3) Notwithstanding anything contained in sub-section (2), no employer shall, during the pendency of any

Explanation.-For the purposes of this sub-section, a "protected workman", in relation to an establishment

(4) In every establishment, the number of workmen to be recognised as protected workmen for the purposes

(5) Where an employer makes an application to a conciliation officer, Board, 2[an arbitrator, a] labour

2. Ins. by Act 36 of 1964, s. 18 (w.e.f. 19-12-1964).

3. Ins. by s. 18, *ibid.* (w.e.f. 19-12-1964).

4. Subs. by Act 45 of 1971, s. 5, for "an officer" (w.e.f. 15-12-1971).

5. Subs. by Act 46 of 1982, s. 17, for "as expeditiously as possible" (w.e.f. 21-8-1984).

=== *CHUNK 73 END* ===

=== CHUNK 74 START ===

Title: CHAPTER VII

Keywords: tribunal, labour, court, national, proceeding, proceedings, before, provisions

Semantic Category: Legal Act

58 1[Provided that where any such authority considers it necessary or expedient so to do, it may, for re
Provided further that no proceedings before any such authority shall lapse merely on the ground that any
Provided that where a proceeding under section 33 or section 33A is pending before a Tribunal or Nationa
(2) Without prejudice to the provisions of sub-section (1), any Tribunal or National Tribunal, if so aut
5[33C. Recovery of money due from an employer.-(1) Where any money is due to a workman from an employer

=== *CHUNK 74 END* ===

=== CHUNK 75 START ===

Title: Chapter VA or Chapter VB], the workman himself or any other person authorised by him in writing in this behalf, or, in the case of the death of the workman, his assignee or heirs may, without prejudice to any other mode of recovery, make an application to the appropriate Government for the recovery of the money due to him, and if the appropriate Government is satisfied that any money is so due, it shall issue a certificate for that amount to the Collector who shall proceed to recover the same in the same manner as an arrear of land revenue:

Keywords: money, workman, application, appropriate, government, amount, subs, other

Semantic Category: Legal Act

Chapter VA or Chapter VB], the workman himself or any other person authorised by him in writing in this
Provided that every such application shall be made within one year from the date on which the money beca
Provided further that any such application may be entertained after the expiry of the said period of one
(2) Where any workman is entitled to receive from the employer any money or any benefit which is capable
2. Ins. by Act 48 of 1950, s. 34 and the Schedule.
3. Subs. by Act 46 of 1982, s. 18, for certain words (w.e.f. 21-8-1984).
4. Ins. by Act 36 of 1956, s. 23 (w.e.f. 10-3-1957).
5. Subs. by Act 36 of 1964, s. 19, for section 33C (w.e.f. 19-12-1964).
6. Subs. by Act 32 of 1976, s. 4, for "

=== CHUNK 75 END ===

=== CHUNK 76 START ===

Title: Chapter VA" (w.e.f. 5-3-1976).

Keywords: court, labour, made, behalf, period, money, after, amount

Semantic Category: Legal Act

Chapter VA" (w.e.f. 5-3-1976).

59 that may be made under this Act, be decided by such Labour Court as may be specified in this behalf b

(4) The decision of the Labour Court shall be forwarded by it to the appropriate Government and any amou

(5) Where workmen employed under the same employer are entitled to receive from him any money or any ben

Explanation.-In this section "Labour Court" includes any court constituted under any law relating to inv

STATE AMENDMENT

Assam Amendment of Section 33-C.-In the principal Act, in section 33-C, in sub-section (1), for the word

[Vide Assam Act 22 of 2007, s. 3] Rajasthan Amendment of section 33C, Central Act 14 of 1947.-In sub-sec

=== *CHUNK 76 END* ===

=== CHUNK 77 START ===

Title: Chapter VA", the expression "or under an order issued by the State Government under section 10K of the Act" shall be inserted.

Keywords: trade, union, court, member, society, other, tribunal, proceeding

Semantic Category: Legal Act

Chapter VA", the expression "or under an order issued by the State Government under section 10K of the A
[Vide Rajasthan Act 14 of 1970, s. 8] 34. Cognizance of offences.-(1) No Court shall take cognizance of
(2) No Court inferior to that of 2[a Metropolitan Magistrate or a Judicial Magistrate of the first class
35. Protection of persons.-(1) No person refusing to take part or to continue to take part in any strike
(2) Nothing in the rules of a trade union or society requiring the settlement of disputes in any manner
3[36. Representation of parties.-(1) A workman who is a party to a dispute shall be entitled to be repre
2. Subs. by Act 46 of 1982, s. 20, for certain words (w.e.f. 21-8-1984).
3. Subs. by Act 48 of 1950, s. 34 and the Schedule, for section 36.
60 (a) 1[any member of the executive or office bearer] of a registered trade union of which he is a memb
(b) 2 [any member of the executive or other office bearer] of a federation of trade unions to which the
(c) where the worker is not a member of any trade union, by 2[any member of the executive or other offic
(2) An employer who is a party to a dispute shall be entitled to be represented in any proceeding under
(b) an officer of a federation of association of employers to which the association referred to in claus
(c) where the employer is not a member of any association of employers, by an officer of any association
(3) No party to a dispute shall be entitled to be represented by a legal practitioner in any conciliatio
(4) In any proceeding 2[before a Labour Court, Tribunal or National Tribunal], a party to a dispute may

=== CHUNK 77 END ===

=== CHUNK 78 START ===

Title: Chapter VA", the expression "or under an order issued by the State Government under section 10K of the Act" shall be inserted.

Keywords: tribunal, court, rules, labour, national, manner, parties, establishment

Semantic Category: Legal Act

(2) The Labour Court, Tribunal or National Tribunal to which such question is referred shall, after giving notice, have power to make rules.-(1) The appropriate Government may, subject to the condition of previous publication, make rules for the purpose of giving effect to the provisions of this Act. (2) In particular and without prejudice to the generality of the foregoing power, such rules may provide for-
1. Subs. by Act 45 of 1971, s. 6, for "an officer" (w.e.f. 15-12-1971).
2. Subs. by Act 36 of 1956, s. 24, for "before a Tribunal" (w.e.f. 10-3-1957).
3. Subs. by s. 24, ibid., for "with the leave of the Tribunal" (w.e.f. 10-3-1957).
4. Ins. by s. 25, ibid. (w.e.f. 10-3-1957).
5. Ins. by Act 46 of 1982, s. 21 (w.e.f. 21-8-1984).
6. Subs. by Act 36 of 1956, s. 26, for "and Tribunals" (w.e.f. 10-3-1957).
61 1[(aa) the form of arbitration agreement, the manner in which it may be signed by the parties, 2[the
(aaa) the appointment of assessors in proceedings under this Act;] 3* * * * (b) the constitution and functions of the Tribunal, 4[(c) the salaries and allowances and the terms and conditions for appointment of the presiding officers and other officers and employees of the Tribunal, 5[(d) the manner in which and the persons by and to whom notice of strike or lock-out may be given and the conditions subject to which parties may be represented by legal practitioners in proceedings under this Act, 6[(f) the conditions subject to which parties may be represented by legal practitioners in proceedings under this Act, 7[(g) any other matter which is to be or may be prescribed.
(3) Rules made under this section may provide that a contravention thereof shall be punishable with fine not exceeding one hundred rupees.]

=== CHUNK 78 END ===

=== CHUNK 79 START ===

Title: Chapter VA", the expression "or under an order issued by the State Government under section 10K of the Act" shall be inserted.

Keywords: government, notification, schedule, state, subs, mining, made, before

Semantic Category: Legal Act

6[(4) All rules made under this section shall, as soon as possible after they are made, be laid before t
2. Ins. by Act 36 of 1964, s. 20 (w.e.f. 19-12-1964).
3 Clause (ab) omitted by Act 24 of 2010, s. 8 (w.e.f. 15-9-2010).
4. Subs. by s. 8, *ibid.*, for clause (c) (w.e.f. 15-9-2010).
5. Subs. by Act 36 of 1956, s. 26, for "or Tribunal" (w.e.f. 10-3-1957).
6. Ins. by Act 36 of 1956, s. 26 (w.e.f. 10-3-1957).
7. Ins. by Act 36 of 1964, s. 20 (w.e.f. 19-12-1964).
8. Subs. by Act 32 of 1976, s. 5, for certain words (w.e.f. 5-3-1976).
9. Subs. by Act 36 of 1956, s. 27, for section 39 (w.e.f. 17-9-1956).
62 (b) where the appropriate Government is a State Government, by such officer or authority subordinate
(2) The Central Government may, by notification in the Official Gazette, add to or alter or amend the Se
(3) Every such notification shall, as soon as possible after it is issued, be laid before the Legislatu
63 1[THE FIRST SCHEDULE [See section 2(n)(vi)]
INDUSTRIES WHICH MAY BE DECLARED TO BE PUBLIC UTILITY SERVICES UNDER SUB-CLAUSE (vi) OF
CLAUSE (n) OF SECTION 2
1. Transport (other than railways) for the carriage of passengers or goods, 2[by land or water];
3[2. Banking;
3. Cement;
4. Coal;
5. Cotton textiles;
6. Food stuffs;
7. Iron and Steel;
8. Defence establishments;
9. Service in hospitals and dispensaries;
10. Fire Brigade Service;
4[11. India Government Mints;] 12. India Security Press;
5[13. Copper Mining;
14. Lead Mining;
15. Zinc Mining;] 6[16. Iron Ore Mining;] 7[17. Service in any oilfield,] 8[***] 9[19. Service in the Un
11[22. Services in the Bank Note Press, Dewas;] 12[23. Phosphorite Mining;] 13[24. Magnesite Mining.] 14
2. Subs. by Act 36 of 1964, s. 22, for "by land, water or air" (w.e.f. 19-12-1964).
3. Declared to be Public utility service for six months effective 17-04-2010 vide Notification No. S.O.

=== CHUNK 79 END ===

=== CHUNK 80 START ===

Title: Chapter VA", the expression "or under an order issued by the State Government under section 10K of the Act" shall be inserted.

Keywords: dated, schedule, standing, orders, workmen, including, notification, other

Semantic Category: Legal Act

4. These entries were added to the Schedule from time to time by notifications issued under section 40 of the Act.
5. Items 13 to 15 added by S.O. 1444, dated 3rd May, 1966.
6. Ins. by S.O. 726, dated 25th February, 1967.
7. Ins. by S.O. 1776, dated 10th May, 1967.
8. Entry 18 omitted by Act 45 of 1971, s. 7 (w.e.f. 15-12-1971).
9. Ins. by S.O. 1471, dated 10th April, 1968.
10. Ins. by S.O. 2061, dated 30th May, 1970.
11. Ins. by S.O. 4697, dated 26th November, 1976.
12. Ins. by S.O. 47, dated 17th December, 1976.
13. Ins. by S.O. 2474, dated 4th September, 1980.
14. Ins. by S.O. 946, dated 7th March, 1981.

64 1[26. Manufacture or production of mineral oil (crude oil), motor and aviation spirit, diesel oil, kerosene, etc.]
STATE AMENDMENT

Karnataka Amendment of the First Schedule.-In the First Schedule to the principal Act, after item No. 10, insert the following:-
[Vide Manipur Act 11 of 1983, s. 4] 1. Ins. by S.O. 4207, dated 20th November, 1984.

2. Subs. by Notification No. S.O.1808(E), dated 05-08-2011.
3. Ins. by S.O. 967, dated 8th April, 1995.
4. Subs. by Notification No. S.O.1955(E) dated 20.06.2017
5. Ins. by Notifications No. S.O.143(E), dated 20-01-2017.
6. Ins. by Notification No. S.O.251(E), dated 25-01-2017.
7. Ins. by Notification No. S.O.6362(E), dated 28-12-2018.

65

THE SECOND SCHEDULE

(See section 7)

MATTERS WITHIN THE JURISDICTION OF LABOUR COURTS

1. The propriety or legality of an order passed by an employer under the standing orders;
2. The application and interpretation of standing orders;
3. Discharge or dismissal of workmen including re-instatement of, or grant of relief to, workmen wrongfully dismissed;
4. Withdrawal of any customary concession or privilege;
5. Illegality or otherwise of a strike or lock-out; and 6. All matters other than those specified in the foregoing provisions of this Schedule.

66

THE THIRD SCHEDULE

(See section 7A)

MATTERS WITHIN THE JURISDICTION OF INDUSTRIAL TRIBUNALS

1. Wages, including the period and mode of payment;
2. Compensatory and other allowances;
3. Hours of work and rest intervals;
4. Leave with wages and holidays;
5. Bonus, profit sharing, provident fund and gratuity;
6. Shift working otherwise than in accordance with standing orders;
7. Classification by grades;
8. Rules of discipline;
9. Rationalisation;
10. Retrenchment of workmen and closure of establishment; and 11. Any other matter that may be prescribed by the Government.

67

THE FOURTH SCHEDULE

(See section 9A)

CONDITIONS OF SERVICE FOR CHANGE OF WHICH NOTICE IS TO BE GIVEN

1. Wages, including the period and mode of payment;
2. Contribution paid, or payable, by the employer to any provident fund or pension fund or for the benefit of workmen;
3. Compensatory and other allowances;
4. Hours of work and rest intervals;
5. Leave with wages and holidays;
6. Starting, alteration or discontinuance of shift working otherwise than in accordance with standing orders;
7. Classification by grades;
8. Withdrawal of any customary concession or privilege or change in usage;
9. Introduction of new rules of discipline, or alteration of existing rules, except in so far as they are inconsistent with the provisions of the Act;
10. Rationalisation, standardisation or improvement of plant or technique which is likely to lead to retrenchment of workmen.

=== CHUNK 80 END ===

=== CHUNK 81 START ===

Title: Chapter VA", the expression "or under an order issued by the State Government under section 10K of the Act" shall be inserted.

Keywords: trade, workmen, union, workman, strike, employer, unions, other

Semantic Category: Legal Act

11. Any increases or reduction (other than casual) in the number of persons employed or to be employed in
- 68 1[THE FIFTH SCHEDULE [See section 2(ra)]
- UNFAIR LABOUR PRACTICES
- I.-On the part of employers and trade unions of employers 1. To interfere with, restrain from, or coerce
- (b) threatening a lock-out or closure, if a trade union is organised;
- (c) granting wage increase to workmen at crucial periods of trade union organisation, with a view to und
2. To dominate, interfere with or contribute support, financial or otherwise, to any trade union, that i
3. To establish employer sponsored trade unions of workmen.
4. To encourage or discourage membership in any trade union by discriminating against any workman, that
- (b) discharging or dismissing a workman for taking part in any strike (not being as trike which is deeme
- (c) changing seniority rating of workmen because of trade union activities;
- (d) refusing to promote workmen to higher posts on account of their trade union activities;
- (e) giving unmerited promotions to certain workmen with a view to creating discord amongst other workmen
- (f) discharging office-bearers or active members of the trade union on account of their trade union acti
5. To discharge or dismiss workmen- (a) by way of victimisation;
- (b) not in good faith, but in the colourable exercise of the employer's rights;
- (c) by falsely implicating a workman in a criminal case on false evidence or on concocted evidence;
- (d) for patently false reasons;
- (e) on untrue or trumped up allegation of absence without leave;
- (f) in utter disregard of the principles of natural justice in the conduct of domestic enquiry or with u
1. Ins. by Act 46 of 1982, s. 23 (w.e.f. 21-8-1984).
- 69 (g) for misconduct of a minor or technical character, without having any regard to the nature of the
6. To abolish the work of a regular nature being done by workmen, and to give such work to contractors a
7. To transfer a workman mala fide from one place to another, under the guise of following management po
8. To insist upon individual workmen, who are on a legal strike to sign a good conduct bond, as a pre-co
9. To show favouritism or partiality to one set of workers regardless of merit.
10. To employ workmen as "badlis", casuals or temporaries and to continue them as such for years, with t
11. To discharge or discriminate against any workman for filing charges or testifying against an employe
12. To recruit workmen during a strike which is not an illegal strike.
13. Failure to implement award, settlement or agreement.
14. To indulge in acts of force or violence.
15. To refuse to bargain collectively, in good faith with the recognised trade unions.
16. Proposing or continuing a lock-out deemed to be illegal under this Act.
- II.-On the part of workmen and trade unions of workmen 1. To advise or actively support or instigate any

=== CHUNK 81 END ===

=== **CHUNK 82 END** ===